AN ARGUMENT FROM THE CHURCH'S OWN WORDS

The Case for Sedevacantism: An Argument from the Church's Own Words

Every quotation is given with its source so it can be checked. Where the other side has a reply, the reply is stated.

Before the Council After the Council The contradiction Anathema or solemn definition

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Summary

This paper argues that the men who have claimed the papacy since the Second Vatican Council (1962–1965) do not hold the authority of the Roman Pontiff, and that the Apostolic See is therefore vacant (*sede vacante*).

It uses no private revelation and no new theology. It argues from texts that every Catholic accepts: popes, councils, the Code of Canon Law and the standard theology manuals. Every quotation is given with its source so that it can be checked. Where the other side has a reply, the reply is stated.

The argument has four steps:

1. **The Church cannot teach error, impose harmful universal laws, or give her children invalid or doubtful sacraments.** This follows from her divine constitution.
2. **The post-conciliar authorities have done these things.** Their official teaching and law contradict what the Church taught and legislated before the Council, sometimes in almost the same words. The paper sets out more than twenty such contradictions side by side, each with the fuller passage, its context, and the other side's reply.
3. **One who holds the Church's authority cannot do these things.** So the authority that did them is not the authority of the Church.
4. **The same Catholic theology explains how this is possible.** A public heretic is not a member of the Church and cannot be her head, and the Church can survive a long vacancy of the Holy See.

The strongest objection, that the Church must remain visible with a hierarchy, is answered honestly in section 8, including the question that remains open.

1. What is being claimed, and what is not

What is claimed. The Catholic Church still exists, with her faith, her sacraments and her divine constitution. The Holy See is vacant because the claimants since the Council have publicly professed and imposed doctrines that the Church condemned, and a public heretic cannot hold office in the Church.

What is not claimed.

- It is not a denial of the papacy. The argument depends on the papacy: it is precisely because the pope's teaching and laws are protected by God that the conciliar teaching and laws cannot come from a pope.
- It is not private judgment. The contradictions are between public, official documents. Comparing two published texts is not a private opinion about anyone's soul.
- It is not a claim to have authority to depose anyone. Catholic canon law teaches that public defection from the faith empties an office *of itself*, "without any declaration" (canon 188 §4, below).
- It is not a claim that every Catholic who attends the new rites is personally guilty. Ignorance and good faith are real. The argument concerns the authority that promulgated the changes.

2. Three principles every Catholic accepts

Principle 1: The Church cannot give error or evil

Vatican I, *Pastor Aeternus* ch. 4 §§6–7 (1870; EWTN translation):
"6. For the Holy Spirit was promised to the successors of Peter not so that they might, by his revelation, make known some new doctrine, but that, by his assistance, they might religiously guard and faithfully expound the revelation or deposit of faith transmitted by the apostles. Indeed, their apostolic teaching was embraced by all the venerable fathers and reverenced and followed by all the holy orthodox doctors, for they knew very well that **this See of St. Peter always remains unblemished by any error**, in accordance with the divine promise of our Lord and Savior to the prince of his disciples: I have prayed for you that your faith may not fail; and when you have turned again, strengthen your brethren [60]. 7. **This gift of truth and never-failing faith was therefore divinely conferred on Peter and his successors in this See** so that they might discharge their exalted office for the salvation of all, and so that **the whole flock of Christ might be kept away by them from the poisonous food of error** and be nourished with the sustenance of heavenly doctrine. Thus the tendency to schism is removed and the whole Church is preserved in unity, and, resting on its foundation, can stand firm against the gates of hell."

Context: These paragraphs are the historical preamble to the definition of papal infallibility. The definition itself follows in §9 and is narrower: the Roman Pontiff is infallible "when the Roman Pontiff speaks EX CATHEDRA, that is, when, in the exercise of his office as shepherd and teacher of all Christians, in virtue of his supreme apostolic authority, he defines a doctrine concerning faith or morals to be held by the whole Church". Paragraph 6 also says what the assistance is for: to guard the deposit, not to make known "some new doctrine".

Pius XII, *Mystici Corporis* §66 (1943):
"And if at times there appears in the Church something that indicates the weakness of our human nature, it should not be attributed to her juridical constitution, but rather to that regrettable inclination to evil found in each individual, which its Divine Founder permits even at times in the most exalted members of His Mystical Body, for the purpose of testing the virtue of the Shepherds no less than of the flocks, and that all may increase the merit of their Christian faith. For, as We said above, Christ did not wish to exclude sinners from His Church; hence if some of her members are suffering from spiritual maladies, that is no reason why we should lessen our love for the Church, but rather a reason why we should increase our devotion to her members. Certainly **the loving Mother is spotless in the Sacraments by which she gives birth to and nourishes her children; in the faith which she has always preserved inviolate; in her sacred laws imposed on all**; in the evangelical counsels which she recommends; in those heavenly gifts and extraordinary grace through which with inexhaustible fecundity,[130] she generates hosts of martyrs, virgins and confessors. But it cannot be laid to her charge if some members fall, weak or wounded. …"

Context: Pius XII is answering those who set a "juridical" Church against a Church of charity. He grants that personal sin is found "even at times in the most exalted members", Shepherds included. He then sets apart what is never the Church's fault: her sacraments, her faith and the laws she imposes on all. The paragraph goes on to the Church's prayer for her fallen members.

Council of Trent, Session 22 (17 September 1562), ch. 5 and canon 7:
"And whereas such is the nature of man, that, without external helps, he cannot easily be raised to the meditation of divine things; therefore has holy Mother Church instituted certain rites, to wit that certain things be pronounced in the mass in a low, and others in a louder, tone. She has likewise employed ceremonies, such as mystic benedictions, lights, incense, vestments, and many other things of this kind, derived from an apostolical discipline and tradition, whereby both the majesty of so great a sacrifice might be recommended, and the minds of the faithful be excited, by those visible signs of religion and piety, to the contemplation of those most sublime things which are hidden in this sacrifice."
"CANON VII.–**If any one saith, that the ceremonies, vestments, and outward signs, which the Catholic Church makes use of in the celebration of masses, are incentives to impiety, rather than offices of piety; let him be anathema.**"

Context: Session 22 is Trent's decree on the Sacrifice of the Mass. Chapter 5 explains why the Church uses ceremonies, and canon 7 condemns the Protestant charge that they lead to impiety. The canon names the ceremonies "which the Catholic Church makes use of". Applying it to rites promulgated later is this paper's inference: if a rite is truly the Church's, it falls under the same protection.

CONDEMNED · Pius VI, *Auctorem Fidei* (1794), proposition 78 (Denzinger 1578):
"The prescription of the synod about the order of transacting business in the conferences, in which, after it prefaced 'in every article that which pertains to faith and to the essence of religion must be distinuished from that which is proper to discipline,' it adds, 'in this itself (discipline) there is to be distinguished what is necessary or useful to retain the faithful in spirit, from that which is useless or too burdensome for the liberty of the sons of the new Covenant to endure, but more so, from that which is dangerous or harmful, namely, leading to superstitution and materialism'; in so far as by the generality of the words it includes and submits to a prescribed examination even the discipline established and approved by the Church, **as if the Church which is ruled by the Spirit of God could have established discipline which is not only useless and burdensome for Christian liberty to endure, but which is even dangerous and harmful** and leading to superstition and materialism,–**false, rash, scandalous, dangerous, offensive to pious ears, injurious to the Church and to the Spirit of God by whom it is guided, at least erroneous.**"

Context: Pius VI is condemning, one by one, propositions of the Jansenist Synod of Pistoia (1786). The synod proposed to sift the Church's approved discipline for what was "dangerous or harmful". This is a solemn papal condemnation with theological censures, not a conciliar anathema; "at least erroneous" is a note below heresy. "Distinuished" and "superstitution" are misprints in the Deferrari translation.

The Church's faith, her universal laws and her rites are protected. The solemn definition of 1870 is limited to *ex cathedra* teaching. The protection of the Church's universal laws and rites rests on texts like *Mystici Corporis* §66, Trent's canon 7 and Pius VI's condemnation of the opposite opinion. A Catholic cannot hold that the Church's authority imposed on the whole Church a doctrine she had condemned, a law contrary to faith, or a rite that endangers the sacraments.

Principle 2: The meaning of dogma never changes

Vatican I, *Dei Filius* ch. 4 (1870; Tanner translation):
"For the doctrine of the faith which God has revealed is put forward not as some philosophical discovery capable of being perfected by human intelligence, but as a divine deposit committed to the spouse of Christ to be faithfully protected and infallibly promulgated. Hence, too, **that meaning of the sacred dogmas is ever to be maintained which has once been declared by holy mother church, and there must never be any abandonment of this sense under the pretext or in the name of a more profound understanding.** May understanding, knowledge and wisdom increase as ages and centuries roll along, and greatly and vigorously flourish, in each and all, in the individual and the whole church: but this only in its own proper kind, that is to say, **in the same doctrine, the same sense, and the same understanding**."
(Latin: "Hinc sacrorum quoque dogmatum is sensus perpetuo est retinendus, quem semel declaravit Sancta Mater Ecclesia, nec umquam ab eo sensu, altior intelligentiae specie et nomine, recedendum. Crescat igitur et multum vehementerque proficiat, tam singulorum, quam omnium, tam unius hominis, quam totius Ecclesiae, aetatum ac saeculorum gradibus, intelligentia, scientia, sapientia; sed in suo dumtaxat genere, in eodem scilicet dogmate, eodem sensu, eademque sententia.")

Context: This is the close of the chapter "On faith and reason". The sentences before it say that the sciences may use their own methods but must not intrude on faith. The council does allow growth in understanding, quoting St Vincent of Lérins, but only "in the same sense". The chapter ends with canons, below.

ANATHEMA · Vatican I, *Dei Filius*, canons on faith and reason, canon 3 (Tanner translation):
"3. **If anyone says that it is possible that at some time, given the advancement of knowledge, a sense may be assigned to the dogmas propounded by the church which is different from that which the church has understood and understands: let him be anathema.**"

Context: this canon attaches the council's anathema to the teaching of chapter 4 just quoted. Canon 2, before it, condemns anyone who says that human sciences may hold as true conclusions "opposed to divine revelation".

> **Oath against Modernism** (Pius X, 1910), sworn by every priest until 1967:
> "Fourthly, I sincerely hold that the doctrine of faith was handed down to us from the apostles through the orthodox Fathers in exactly the same meaning and always in the same purport. Therefore, **I entirely reject the heretical' misrepresentation that dogmas evolve and change from one meaning to another different from the one which the Church held previously.** I also condemn every error according to which, in place of the divine deposit which has been given to the spouse of Christ to be carefully guarded by her, there is put a philosophical figment or product of a human conscience that has gradually been developed by human effort and will continue to develop indefinitely."
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> *Context:* This is the fourth article of the oath, which was prescribed for "all clergy, pastors, confessors, preachers, religious superiors, and professors in philosophical-theological seminaries". The articles before it profess that God can be known by reason, that miracles prove revelation, and that Christ founded the Church on Peter. The stray apostrophe after "heretical" is in the source.

Doctrine can be understood more deeply, but only "in the same doctrine, the same sense, and the same understanding" (*in eodem scilicet dogmate, eodem sensu, eademque sententia, Dei Filius*). A later teaching that says the opposite of an earlier one is not development.

Principle 3: A public heretic is not a member of the Church and cannot hold office in her

Pius XII, *Mystici Corporis* §§22–23:
"22. **Actually only those are to be included as members of the Church who have been baptized and profess the true faith, and who have not been so unfortunate as to separate themselves from the unity of the Body**, or been excluded by legitimate authority for grave faults committed. "For in one spirit" says the Apostle, "were we all baptized into one Body, whether Jews or Gentiles, whether bond or free."[17] As therefore in the true Christian community there is only one Body, one Spirit, one Lord, and one Baptism, so there can be only one faith.[18] And therefore, if a man refuse to hear the Church, let him be considered - so the Lord commands - as a heathen and a publican. [19] **It follows that those who are divided in faith or government cannot be living in the unity of such a Body**, nor can they be living the life of its one Divine Spirit. 23. Nor must one imagine that the Body of the Church, just because it bears the name of Christ, is made up during the days of its earthly pilgrimage only of members conspicuous for their holiness … For **not every sin, however grave it may be, is such as of its own nature to sever a man from the Body of the Church, as does schism or heresy or apostasy.**"

Context: Pius XII is defining who belongs to the visible Church. Paragraph 23 goes on to say that sinners remain members as long as they keep faith and hope. Heresy, schism and apostasy are named as the sins that sever by their own nature. The passage is general: it speaks of members, not specifically of office-holders.

Code of Canon Law (1917), canon 188, 4°:
"**Ob tacitam renuntiationem ab ipso iure admissam** quaelibet officia vacant ipso facto et sine ulla declaratione, si clericus: … 4° **A fide catholica publice defecerit**; …"
(By tacit resignation admitted by the law itself, any offices whatever become vacant by the fact itself and without any declaration, if a cleric … 4° has publicly defected from the Catholic faith. Author's translation.)

Context: Canon 188 belongs to the canons on resignation of office. It lists eight acts that the law treats as a *tacit resignation*: the cleric is held to have given up his office himself, so no sentence is needed. The other acts include religious profession, attempted marriage and desertion of residence. The canon speaks of clerics and offices in general and does not name the papacy. Applying it to a pope depends on the theologians' teaching that a manifest heretic loses office (Bellarmine, below).

> **Mgr G. Van Noort**, *Christ's Church*, pp. 240–241:
> "Public heretics (and a fortiori, apostates) are not members of the Church. They are not members because they separate themselves from the unity of Catholic faith and from the external profession of that faith. … By the term public heretics at this point we mean all who externally deny a truth (for example Mary's Divine Maternity), or several truths of divine and Catholic faith, regardless of whether the one denying does so ignorantly and innocently (a merely material heretic), or wilfully and guiltily (a formal heretic). **It is certain that public, formal heretics are severed from Church membership.** It is the more common opinion that public, material heretics are likewise excluded from membership. Theological reasoning for this opinion is quite strong: **if public material heretics remained members of the Church, the visibility and unity of Christ's Church would perish.**"
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> *Context:* Van Noort is listing who is not a member of the Church, following *Mystici Corporis*. He calls the exclusion of public *formal* heretics certain, but the exclusion of public *material* heretics (those in good faith) only "the more common opinion". The OCR's line-end hyphens have been joined.

This is the view defended by St Robert Bellarmine (*De Romano Pontifice* II.30): one who is not a member of the Church cannot be her head.

Put together: if official, universal teaching and law since the Council contradict the Church's teaching and law, then either the Church has failed, which is impossible (Principle 1), or the authority that imposed them was not the Church's authority (Principle 3). The rest of this paper shows the contradictions.

The anathemas, and where they fall

An **anathema** is the Church's most solemn form of condemnation. General councils close their doctrinal decrees with canons in the form "If anyone says … let him be anathema". What such a canon condemns is heresy; what it affirms must be believed. Vatican I states what binds a Catholic's faith:

DEFINED · Vatican I, *Dei Filius* ch. 3 (Tanner translation):
"Wherefore, **by divine and catholic faith all those things are to be believed which are contained in the word of God as found in scripture and tradition, and which are proposed by the church as matters to be believed as divinely revealed, whether by her solemn judgment or in her ordinary and universal magisterium.**"

Context: the chapter is "On faith". The 1917 Code defines a heretic as one who, keeping the name of Christian, "pertinaciter aliquam ex veritatibus fide divina et catholica credendis denegat aut de ea dubitat" (pertinaciously denies or doubts one of the truths to be believed by divine and catholic faith) (canon 1325 §2).

Two cautions keep this honest. First, not every contradiction in this paper meets an anathema. The condemnations of religious liberty, for instance, are papal (Pius IX: "we reprobate, proscribe, and condemn"), not conciliar anathemas. Second, the post-conciliar documents rarely state an anathematised proposition in so many words; more often they teach or legislate in a way that sits against it. The table says which is which. Two anathemas are cited *against* the position of this paper; they are listed too and answered in section 8.

ANATHEMA OR DEFINITION	WHAT IT SAYS	WHERE IT BEARS	HOW DIRECTLY
Trent, Session 6, canons 4, 9 (1547)	Anathema to one who says that free will "nowise co-operates" and is "merely passive" in justification, or that "by faith alone the impious is justified" in the sense that nothing else need cooperate	4.6: Rome's 1999 *Joint Declaration* says the Lutheran teaching it presents "does not fall under the condemnations from the Council of Trent"	Direct: Rome itself addresses Trent's anathemas
Florence, *Cantate Domino* (1442); Lateran IV, const. 1 (1215)	Defined: outside the Church "nobody at all is saved"; "only for those who abide in it do the church's sacraments contribute to salvation"	4.3: separated communities as "means of salvation"	Direct in subject; the Council adds qualifiers
Vatican I, *Dei Filius*, canon on faith and reason 3 (1870)	Anathema to a new sense of dogma	Principle 2; 7.1	Governs every contradiction in this paper
Trent, Session 7, canon 13 (1547)	Anathema to saying the received rites may be changed "into other new ones"	7.4	Disputed: defenders say it binds lesser pastors, not the pope
Trent, Session 22, canons 1, 3 (1562)	Anathema to denying that the Mass is a true and propitiatory sacrifice	7.5: the 1969 definition of the Mass	Indirect: the 1969 text omits, it does not deny
Trent, Session 23, canon 7 (1563)	Anathema to denying that bishops have "the power of	6: what the episcopal form must signify	Indirect: defines the power, not the words

ANATHEMA OR DEFINITION	WHAT IT SAYS	WHERE IT BEARS	HOW DIRECTLY
	confirming and ordaining”		
Trent, Session 22, canon 7; Pius VI, *Auctorem Fidei* prop. 78	The Church’s ceremonies are not incentives to impiety; she cannot establish harmful discipline	Principle 1	The premise of the whole argument
Cited against this paper: Vatican I, *Pastor Aeternus* ch. 2, canon	Anathema to denying that Peter has “perpetual successors” by divine law	§8, visibility	Answered there
Cited against this paper: Trent, Session 23, canon 7, last clause	Anathema to saying that those “neither rightly ordained, nor sent, by ecclesiastical and canonical power” are lawful ministers	§8, jurisdiction	Answered there; it bears on all traditional clergy

3. Religious liberty

The Church taught that the State must profess the true religion, that error has no rights, and that non-Catholic worship may at most be *tolerated* for a grave reason. Vatican II declared a natural right, grounded in revelation, to practise any religion in public, limited only by the requirements of public order.

3.1 Liberty of worship as a personal right written into civil law

BEFORE · Pius IX, *Quanta Cura* §3 (1864), condemning the opinion that Gregory XVI had called *deliramentum* ("insanity"):

"And, against the doctrine of Scripture, of the Church, and of the Holy Fathers, they do not hesitate to assert that 'that is the best condition of civil society, in which no duty is recognized, as attached to the civil power, of restraining by enacted penalties, offenders against the Catholic religion, except so far as public peace may require.' From which totally false idea of social government they do not fear to foster that erroneous opinion, most fatal in its effects on the Catholic Church and the salvation of souls, called by Our Predecessor, Gregory XVI, an 'insanity,' viz., that '**liberty of conscience and worship is each man's personal right, which ought to be legally proclaimed and asserted in every rightly constituted society**; and that a right resides in the citizens to an absolute liberty, which should be restrained by no authority whether ecclesiastical or civil, whereby they may be able openly and publicly to manifest and declare any of their ideas whatever, either by word of mouth, by the press, or in any other way.' But, while they rashly affirm this, they do not think and consider that they are preaching 'liberty of perdition;' …"

Context: Pius IX is listing the opinions of those who apply "naturalism" to civil society and would govern it "without any distinction being made between the true religion and false ones". He presents the liberty-of-worship opinion as fostered by the one just before it (see 3.6). In §6 he condemns "all the singular and evil opinions and doctrines severally mentioned in this letter".

AFTER · Vatican II, *Dignitatis Humanae* §§1–2 (1965):

"Religious freedom, in turn, which men demand as necessary to fulfill their duty to worship God, has to do with immunity from coercion in civil society. Therefore it leaves untouched traditional Catholic doctrine on the moral duty of men and societies toward the true religion and toward the one Church of Christ. Over and above all this, the council intends to develop the doctrine of recent popes on the inviolable rights of the human person and the constitutional order of society.

2. This Vatican Council declares that **the human person has a right to religious freedom**. This freedom means that all men are to be immune from coercion on the part of individuals or of social groups and of any human power, in such wise that no one is to be forced to act in a manner contrary to his own beliefs, whether privately or publicly, whether alone or in association with others, within due limits. The council further declares that the right to religious freedom has its foundation in the very dignity of the human person as this dignity is known through the revealed word of God and by reason itself. **This right of the human person to religious freedom is to be recognized in the constitutional law whereby society is governed and thus it is to become a civil right.**"

Context: §1 first professes that "this one true religion subsists in the Catholic and Apostolic Church" and that all men are bound to seek the truth and embrace it. It then defines religious freedom as immunity from coercion. §2 states the right and its limit, which §7 defines as "public order" (see 3.6).

The contradiction: the first half of the condemned opinion and *Dignitatis Humanae* §2 have the same structure: a personal right to freedom of worship, which the law of every rightly constituted society must proclaim. The condemned opinion goes on to claim "an absolute liberty, which should be restrained by no authority". The Council does not teach that: its right is immunity from coercion "within due limits". This pair therefore does not settle the matter alone; it depends on 3.6, where Pius IX condemned the *limited* version too. He attached his full authority to the condemnation: "by our Apostolic authority, we reprobate, proscribe, and condemn all the singular and evil opinions and doctrines severally mentioned in this letter" (§6).

> **Objection:** *Dignitatis Humanae* means only freedom from coercion "within due limits", not the unlimited liberty Pius IX condemned. It also says it "leaves untouched traditional Catholic doctrine on the moral duty of men and societies toward the true religion" (§1). Fr Brian Harrison reports that his work helped Michael Davies (quoted at 3.4) "to see that there is no formal contradiction between Pius IX's 1864 encyclical Quanta Cura and the doctrine of Dignitatis Humanae".

> **Answer:** Pius IX did not condemn only unlimited liberty. In the same sentence he traces it to the opinion that the State has no duty to restrain offenders against the Catholic religion "except so far as public peace may require" (3.6). That is a *limited* liberty, bounded by public peace, and it is the same kind of limit the Council adopted. As for "leaves untouched", §1 asserts continuity but does not show it. The traditional doctrine on the duty of societies included the State's duty to restrain the public worship of false religions, which it could at most tolerate (3.3–3.6). If §§2–7 deny the State that power, the sentence in §1 cannot make them consistent with the earlier teaching. Whether they are consistent is the question at issue.

3.2 A right given by nature

BEFORE · Leo XIII, *Libertas* §42 (1888):
"From what has been said it follows that it is quite unlawful to demand, to defend, or to grant unconditional freedom of thought, of speech, or writing, or of worship, **as if these were so many rights given by nature to man**. For, if nature had really granted them, it would be lawful to refuse obedience to God, and there would be no restraint on human liberty. It likewise follows that **freedom in these things may be tolerated wherever there is just cause**, but only with such moderation as will prevent its degenerating into license and excess. And, where such liberties are in use, men should employ them in doing good, and should estimate them as the Church does; for liberty is to be regarded as legitimate in so far only as it affords greater facility for doing good, but no farther."

Context: §42 opens Leo XIII's practical conclusions, after his summary of the grades of liberalism (§§36–41). In §§33–34 he has explained that the State may tolerate evil for a greater good, but must confine that tolerance "to the limits which its justifying cause, the public welfare, requires" (see 3.3).

AFTER · *Dignitatis Humanae* §2:
"It is in accordance with their dignity as persons-that is, beings endowed with reason and free will and therefore privileged to bear personal responsibility-that all men should be at once impelled by nature and also bound by a moral obligation to seek the truth, especially religious truth. They are also bound to adhere to the truth, once it is known, and to order their whole lives in accord with the demands of truth. However, men cannot discharge these obligations in a manner in keeping with their own nature unless they enjoy immunity from external coercion as well as psychological freedom. Therefore **the right to religious freedom has its foundation not in the subjective disposition of the person, but in his very nature**."

Context: this paragraph follows the declaration of the right (3.1) and explains what it rests on. The next sentence (3.3) draws the consequence that the right persists even in those who neglect the truth. §9 adds that "this doctrine of freedom has roots in divine revelation".

The contradiction: Leo XIII denies that freedom of worship is a right given by nature, and classes whatever freedom may be allowed as something that "may be tolerated wherever there is just cause". The Council grounds freedom of worship in human nature itself, and adds that this dignity is known "through the revealed word of God and by reason itself" (§2).

> **Objection:** Leo XIII condemns as a natural right only *unconditional* freedom. The Council's right is conditioned ("within due limits"), so he did not condemn it.

> **Answer:** Leo's next sentence says what the conditioned freedom is: it "may be tolerated wherever there is just cause, but only with such moderation as will prevent its degenerating into license". A limited freedom of worship is therefore a concession by public authority for a just cause, not a right of nature. The Council makes that limited freedom itself a natural right. Government must recognise it in

> constitutional law (§2) and “assume the safeguard of the religious freedom of all its citizens, in an effective manner, by just laws” (§6).

3.3 Rights for those in error

BEFORE · Pius XII, *Ci Riesce* §V (1953):
"Could it be that *in certain circumstances* He would not give men any mandate, would not impose any duty, and would not even communicate the right to impede or to repress what is erroneous and false? A look at things as they are gives an affirmative answer. Reality shows that error and sin are in the world in great measure. God reprobates them, but He permits them to exist. Hence the affirmation: religious and moral error must always be impeded, when it is possible, because toleration of them is in itself immoral, is not valid *absolutely and unconditionally.* Moreover, God has not given even to human authority such an absolute and universal command in matters of faith and morality. … The duty of repressing moral and religious error cannot therefore be an ultimate norm of action. It must be subordinate to *higher and more general* norms, which *in some circumstances* permit, and even perhaps seem to indicate as the better policy, toleration of error in order to promote a *greater good.* Thus the two principles are clarified to which recourse must be had in concrete cases for the answer to the serious question concerning the attitude which the jurist, the statesman and the sovereign Catholic state is to adopt in consideration of the community of nations in regard to a formula of religious and moral toleration as described above. First: **that which does not correspond to truth or to the norm of morality objectively has no right to exist, to be spread or to be activated.** Secondly: failure to impede this with civil laws and coercive measures can nevertheless be justified in the interests of a higher and more general good."

Leo XIII, *Libertas* §§33–34: "For this reason, while **not conceding any right to anything save what is true and honest**, she does not forbid public authority to tolerate what is at variance with truth and justice, for the sake of avoiding some greater evil, or of obtaining or preserving some greater good. … But, to judge aright, we must acknowledge that, the more a State is driven to tolerate evil, the further is it from perfection; and that the tolerance of evil which is dictated by political prudence should be strictly confined to the limits which its justifying cause, the public welfare, requires. Wherefore, if such tolerance would be injurious to the public welfare, and entail greater evils on the State, it would not be lawful; for in such case the motive of good is wanting. And although in the extraordinary condition of these times the Church usually acquiesces in certain modern liberties, not because she prefers them in themselves, but because she judges it expedient to permit them, she would in happier times exercise her own liberty; and, by persuasion, exhortation, and entreaty would endeavor, as she is bound, to fulfill the duty assigned to her by God of providing for the eternal salvation of mankind. One thing, however, remains always true - that the liberty which is claimed for all to do all things is not, as We have often said, of itself desirable, inasmuch as **it is contrary to reason that error and truth should have equal rights**."

Context: Pius XII is addressing Catholic jurists on whether a Catholic State may join a community of nations whose rule would not hinder religions recognised in any member State. He answers that such toleration may be permitted for a higher good, which the Catholic statesman must judge in each case, and on which the Pope is "competent to speak in the last instance". The omitted words cite the parable of the cockle. Leo XIII is explaining how the Church permits toleration of evil while granting it no right; the omitted words compare this with God's permission of evil.

AFTER · *Dignitatis Humanae* §§2, 4:

"Therefore the right to religious freedom has its foundation not in the subjective disposition of the person, but in his very nature. In consequence, **the right to this immunity continues to exist even in those who do not live up to their obligation of seeking the truth and adhering to it and the exercise of this right is not to be impeded**, provided that just public order be observed."

§4: "Religious communities also have **the right not to be hindered in their public teaching and witness to their faith**, whether by the spoken or by the written word. However, in spreading religious faith and in introducing religious practices everyone ought at all times to refrain from any manner of action which might seem to carry a hint of coercion or of a kind of persuasion that would be dishonorable or unworthy, especially when dealing with poor or uneducated people. Such a manner of action would have to be considered an abuse of one's right and a violation of the right of others."

Context: the right is the immunity from coercion defined in §2 (3.1), and "public order" is defined in §7 (3.6). §4 applies the right to religious communities without distinguishing true from false religions.

The contradiction: Pius XII says that error has "no right … to be spread", and that a failure to impede it "can … be justified" by a higher good, case by case. The Council says that those who do not seek or hold the truth keep a right whose exercise "is not to be impeded", and that religious communities have "the right not to be hindered in their public teaching". Before, toleration was the exception and needed a justification. Now non-hindrance is the rule, and only public order justifies an exception.

> **Objection:** the right belongs to the person, not to the error: the Council grants immunity from coercion, not a right to spread error. Pius XII himself says that God may "not even communicate the right to impede or to repress what is erroneous and false". Fr Brian Harrison argues that this "seems to imply that those who propagate them do have a God-given right, under those circumstances, to be immune from such repression".

> **Answer:** Pius XII places the "non impedire" under his second principle. It is a *failure to impede* that "can nevertheless be justified" by a higher good, in some circumstances, as weighed by the Catholic statesman with the judgement of the Church. Leo XIII likewise allows tolerance while "not conceding any right to anything save what is true and honest". Neither makes non-hindrance a right that every person has by nature, still less one that persists in those who neglect the truth. The right in question is the right *to act publicly* on one's religion, that is, to spread and practise it, and §4 names it: "the right not to be hindered in their public teaching". Pius XII denied that very thing to error: it has no right "to be spread or to be activated".

3.4 Public worship of non-Catholic religions

BEFORE · *Syllabus of Errors* (1864), §X, "Errors having reference to modern liberalism", propositions 77–79 (all condemned):

"77. In the present day it is no longer expedient that the Catholic religion should be held as the only religion of the State, to the exclusion of all other forms of worship. — Allocution 'Nemo vestrum,' July 26, 1855.

78. **Hence it has been wisely decided by law, in some Catholic countries, that persons coming to reside therein shall enjoy the public exercise of their own peculiar worship.** — Allocution 'Acerbissimum,' Sept. 27, 1852.

79. Moreover, it is false that the civil liberty of every form of worship, and the full power, given to all, of overtly and publicly manifesting any opinions whatsoever and thoughts, conduce more easily to corrupt the morals and minds of the people, and to propagate the pest of indifferentism. — Allocution 'Nunquam fore,' Dec. 15, 1856."

Context: each proposition of the Syllabus is an error Pius IX had already condemned in an earlier act, which is cited after it. Proposition 78 opens with "Hence" and draws a consequence from 77: since the State's religion need no longer exclude other forms of worship, laws granting newcomers public worship are praised as wise.

AFTER · *Dignitatis Humanae* §4:

"The freedom or immunity from coercion in matters religious which is the endowment of persons as individuals is also to be recognized as their right when they act in community. Religious communities are a requirement of the social nature both of man and of religion itself. Provided the just demands of public order are observed, **religious communities rightfully claim freedom** in order that they may govern themselves according to their own norms, **honor the Supreme Being in public worship**, assist their members in the practice of the religious life, strengthen them by instruction, and promote institutions in which they may join together for the purpose of ordering their own lives in accordance with their religious principles."

Context: §4 extends the personal right of §2 to communities. It makes no exception for Catholic countries, and §6 (3.5) requires the same right even where one religion has special civil recognition.

The contradiction: the Syllabus condemns praising laws that grant non-Catholics public worship in Catholic countries. The Council declares that public worship a right. Michael Davies, a defender of the traditional Mass who did not hold the sedevacantist position, wrote: "One instance in which it appears impossible to deny the existence of a formal contradiction is that of Proposition 78 of the Syllabus … Dignitatis humanae most certainly appears to contradict [the Papal condemnation of] this proposition by teaching that non-Catholics shall enjoy the public exercise of their own peculiar worship in every Catholic country, hence the changes in the Spanish Constitution documented in Appendix III" (as quoted by Fr Brian Harrison). Davies stopped short of a verdict of his own: "I shall not claim that a contradiction exists."

> **Objection:** Harrison answers that proposition 78 concerns immigrants ("persons coming to reside therein"), and is "clearly a policy matter, involving not only questions of religious freedom as such, but matters of changeable civil law, such as immigration policies and the rights of non-citizens within a given State". Since §6 speaks of "citizens", "a Catholic nation could, without contravening Dignitatis Humanae, withhold permanent residence rights, citizenship, and full religious liberty from non-Catholic 'persons coming to reside therein'".

> **Answer:** the "Hence" ties 78 to 77, which is not about immigration. It is about whether the Catholic religion should be the only religion of the State "to the exclusion of all other forms of worship". Nor does the Council rest the right on citizenship: §2 grounds it in "the human person", and §4 gives it to "religious communities" as such. Harrison himself concedes that "I do not see how a Catholic government could prohibit all public non-Catholic propaganda 'without infringing the norms laid down by Vatican II'". He also grants that this freedom "was very quickly granted in such nations after the Council (and in its name), at the insistence of the Holy See itself". He treats this as a change of ecclesiastical law rather than of doctrine. But the Syllabus lists proposition 78 as an error, not as a policy.

3.5 The Catholic State

BEFORE · *Syllabus*, proposition 77 (condemned), under §X, "Errors having reference to modern liberalism":
"**In the present day it is no longer expedient that the Catholic religion should be held as the only religion of the State, to the exclusion of all other forms of worship.** — Allocution 'Nemo vestrum,' July 26, 1855."

Context: the error condemned is the claim that modern conditions make the exclusively Catholic State inexpedient. It is drawn from the allocution cited, and proposition 78 (3.4) draws its consequence ("Hence…").

AFTER · *Dignitatis Humanae* §6:
"Government is also to help create conditions favorable to the fostering of religious life, in order that the people may be truly enabled to exercise their religious rights and to fulfill their religious duties, and also in order that society itself may profit by the moral qualities of justice and peace which have their origin in men's faithfulness to God and to His holy will. **If, in view of peculiar circumstances obtaining among peoples, special civil recognition is given to one religious community** in the constitutional order of society, **it is at the same time imperative that the right of all citizens and religious communities to religious freedom should be recognized and made effective in practice.** Finally, government is to see to it that equality of citizens before the law, which is itself an element of the common good, is never violated, whether openly or covertly, for religious reasons. Nor is there to be discrimination among citizens."

Context: §6 opens by counting the care of religious freedom among the duties of government toward the common welfare, and says that "government is to assume the safeguard of the religious freedom of all its citizens". The "special civil recognition" sentence answers whether a confessional State remains possible.

The contradiction: the Catholic State, to the exclusion of other forms of worship, was the norm, and it was condemned to say otherwise. The Council allows special recognition for "peculiar circumstances", but never exclusion: it requires religious freedom for all and forbids "discrimination among citizens" for religious reasons. This was applied at once: Spain's organic law of 10 January 1967 rewrote Article 6 of its Charter, citing *Dignitatis Humanae* §2.

> **Objection:** §6 permits a Catholic State, and §1 keeps "the moral duty of men and societies toward the true religion". Harrison notes that the 1973 concordat between the Holy See and Colombia, "revised specifically in the light of Dignitatis Humanae, grants 'a privileged status to the Catholic Church'".

> **Answer:** proposition 77 does not concern privilege. It concerns exclusion: the Catholic religion as the only religion of the State "to the exclusion of all other forms of worship". That exclusion is exactly what §6 forbids. Recognition survives; the exclusively Catholic State, which it was condemned to call inexpedient, does not.

3.6 The State's duty to restrain false religion

BEFORE · *Quanta Cura* §3:

"For you well know, venerable brethren, that at this time men are found not a few who, applying to civil society the impious and absurd principle of 'naturalism,' as they call it, dare to teach that 'the best constitution of public society and (also) civil progress altogether require that human society be conducted and governed without regard being had to religion any more than if it did not exist; or, at least, without any distinction being made between the true religion and false ones.' And, against the doctrine of Scripture, of the Church, and of the Holy Fathers, they do not hesitate to assert that '**that is the best condition of civil society, in which no duty is recognized, as attached to the civil power, of restraining by enacted penalties, offenders against the Catholic religion, except so far as public peace may require.**' From which totally false idea of social government they do not fear to foster that erroneous opinion … called by Our Predecessor, Gregory XVI, an 'insanity' …"

Context: this is the opinion from which, Pius IX says, the "insanity" of 3.1 springs. The condemned opinion allows restraint, but only for the sake of public peace. What it denies is any duty of the civil power to restrain offenders against the Catholic religion as such.

AFTER · *Dignitatis Humanae* §3:

"There is a further consideration. The religious acts whereby men, in private and in public and out of a sense of personal conviction, direct their lives to God transcend by their very nature the order of terrestrial and temporal affairs. Government therefore ought indeed to take account of the religious life of the citizenry and show it favor, since the function of government is to make provision for the common welfare. However, **it would clearly transgress the limits set to its power, were it to presume to command or inhibit acts that are religious.**"

§7: "Furthermore, society has the right to defend itself against possible abuses committed on the pretext of freedom of religion. It is the special duty of government to provide this protection. However, government is not to act in an arbitrary fashion or in an unfair spirit of partisanship. Its action is to be controlled by juridical norms which are in conformity with the objective moral order. These norms arise out of the need for the effective safeguard of the rights of all citizens and for the peaceful settlement of conflicts of rights, also out of the need for an adequate care of genuine public peace, which comes about when men live together in good order and in true justice, and finally out of the need for a proper guardianship of public morality. These matters constitute the basic component of the common welfare: **they are what is meant by public order**. For the rest, the usages of society are to be the usages of freedom in their full range: that is, the freedom of man is to be respected as far as possible and is not to be curtailed except when and insofar as necessary."

Context: the paragraph of §3 just before ends: "Injury therefore is done to the human person and to the very order established by God for human life, if the free exercise of religion is denied in society, provided just public order is observed." §7 then sets the limit: the rights of all citizens, genuine public peace, and public morality.

The contradiction: Pius IX condemned denying that the State has a duty to restrain offenders against the Catholic religion beyond what public peace requires. The Council says that the State exceeds its power if it commands or inhibits religious acts. It may restrain them only for public order, which it defines as the rights of citizens, public peace and public morality.

> **Objection:** the Council's "public order" includes public morality, the rights of others, and norms "in conformity with the objective moral order", so it is broader than Pius IX's "public peace". Harrison adds that the pre-conciliar restrictions were themselves meant to protect the rights of Catholic citizens. He cites the Council's rejected preparatory schema, which justified them as a way to "defend [Catholic] citizens against the spreading of false doctrines which, in the judgment of the Church, put their eternal salvation at risk".

> **Answer:** all three of the Council's criteria are goods of civil society; none of them is the truth of religion or the protection of the Catholic faith. That is exactly what Pius IX condemned: a State that recognizes no duty toward the true religion as such, and restrains offenders against it only for civil ends. If "the rights of others" included the right of Catholics to be protected from false doctrine, the Council would have left the old restrictions in place. Harrison himself concedes that it did not (3.4).

What the Council's defenders concede. Benedict XVI admitted a discontinuity, but placed it in decisions, not in principles:

> **Benedict XVI**, address to the Roman Curia, 22 December 2005:
> "It is clear that in all these sectors, which all together form a single problem, some kind of discontinuity might emerge. Indeed, **a discontinuity had been revealed** but in which, after the various distinctions between concrete historical situations and their requirements had been made, the continuity of principles proved not to have been abandoned. … The Second Vatican Council, with its new definition of the relationship between the faith of the Church and certain essential elements of modern thought, **has reviewed or even corrected certain historical decisions**, but in this apparent discontinuity it has actually preserved and deepened her inmost nature and true identity."
>
> *Context:* the "sectors" are three questions the Council faced. The second was "the relationship between the Church and the modern State that would make room impartially for citizens of various religions and ideologies". In the omitted passage he argues that "the Church's decisions on contingent matters - for example, certain practical forms of liberalism or a free interpretation of the Bible - should necessarily be contingent themselves". He also argues that the Council "has recovered the deepest patrimony of the Church".

Fr John Courtney Murray SJ, a principal drafter of *Dignitatis Humanae*, said the same more bluntly:

> **J. C. Murray SJ**, "The Declaration on Religious Freedom" (1966):
> "Briefly, the Declaration bases itself on a progress in doctrine that has, in fact, occurred since Leo XIII. It also carries this progress one inevitable step further by **discarding an older theory of civil tolerance in favor of a new doctrine of religious freedom** more in harmony with the authentic and more fully understood tradition of the Church. … In these circumstances, and given this personal conception of rule, the attitude of government toward what is error and evil could only be one of tolerance. Government permits by law what it cannot prevent by law. Moreover, this civil tolerance is no more than a dictate of necessity; it is practiced for the sake of a greater good—the peace of the community. This theory of civil tolerance may indeed be regarded as a counsel of practical wisdom. It **can hardly be regarded as permanent Catholic doctrine**, any more than the theory of government, with which it is correlative, may be so regarded. The roots of both theories are in the contingencies of history, not in the exigencies of abiding truth. Therefore, the Declaration on Religious Freedom puts aside the post-Reformation and 19th-century theory of civil tolerance. The fault is not error but archaism."
>
> *Context:* Murray argues that Leo XIII's tolerance followed from a paternal conception of government (the "ruler-father" who protects "the illiterate masses" from error), which Pius XII and John XXIII replaced with a juridical, constitutional conception. He presents the Declaration as a development of doctrine, not a reversal.

Both men admit that the earlier teaching was set aside. Both defend the change by calling that teaching contingent: "decisions on contingent matters" (Benedict), a "theory" rooted "in the contingencies of history" (Murray). The popes before the Council did not present it so. Pius IX condemned these "opinions and doctrines" "by our Apostolic authority" (*Quanta Cura* §6). Leo XIII said that equal rights for error and truth are "contrary to reason" (*Libertas* §34), and denied that freedom of worship is a right "given by nature" (§42). The defence concedes the discontinuity and disputes only the level at which it lies.

4. Ecumenism and the one true Church

The Church taught that she alone is the Church of Christ, that those divided from her in faith are not her members, and that unity comes only by return to her. After the Council, the Church of Christ is said to be present in other communities, which are means of salvation, and common worship is encouraged.

4.1 The Church of Christ *is* the Catholic Church

BEFORE · Pius XII, *Humani Generis* §27 (1950):
"Some say they are not bound by the doctrine, explained in Our Encyclical Letter of a few years ago, and based on the Sources of Revelation, which teaches that **the Mystical Body of Christ and the Roman Catholic Church are one and the same thing**. Some reduce to a meaningless formula the necessity of belonging to the true Church in order to gain eternal salvation. Others finally belittle the reasonable character of the credibility of Christian faith."

Context: Pius XII is listing errors that have "crept in among certain of Our sons" (§28). The first is the rejection of the teaching of *Mystici Corporis* (1943), which he restates here as a doctrine "based on the Sources of Revelation".

Mystici Corporis §13 (1943): "If we would define and describe **this true Church of Jesus Christ - which is the One, Holy, Catholic, Apostolic and Roman Church** - we shall find nothing more noble, more sublime, or more divine than the expression 'the Mystical Body of Christ' - an expression which springs from and is, as it were, the fair flowering of the repeated teaching of the Sacred Scriptures and the Holy Fathers."

Context: this sentence opens the encyclical's description of the Church. Pius XII first names the true Church as the Roman Church, and then calls that same Church the Mystical Body.

AFTER · Vatican II, *Lumen Gentium* §8 (1964):
"This is the one Church of Christ which in the Creed is professed as one, holy, catholic and apostolic, which our Saviour, after His Resurrection, commissioned Peter to shepherd, and him and the other apostles to extend and direct with authority, which He erected for all ages as 'the pillar and mainstay of the truth'. **This Church constituted and organized in the world as a society, subsists in the Catholic Church**, which is governed by the successor of Peter and by the Bishops in communion with him, **although many elements of sanctification and of truth are found outside of its visible structure**. These elements, as gifts belonging to the Church of Christ, are forces impelling toward catholic unity."

Context: the paragraph begins by teaching that the visible society and the Mystical Body "are not to be considered as two realities" but "one complex reality". The elements found outside are called gifts of the Church of Christ that draw towards Catholic unity.

John Paul II, *Ut Unum Sint* §11 (1995): "By God's grace, however, neither what belongs to the structure of the Church of Christ nor that communion which still exists with the other Churches and Ecclesial Communities has been destroyed. Indeed, the elements of sanctification and truth present in the other Christian Communities, in a degree which varies from one to the other, constitute the objective basis of the communion, albeit imperfect, which exists between them and the Catholic Church. **To the extent that these elements are found in other Christian Communities, the one Church of Christ is effectively present in them.** For this reason the Second Vatican Council speaks of a certain, though imperfect communion."

Context: the paragraph opens by affirming that the Catholic Church "has been preserved in unity, with all the means with which God wishes to endow his Church". John Paul II then explains the "imperfect communion" with other communities by the elements they possess.

The contradiction: identity ("one and the same thing") becomes "subsists in". The qualifiers are real: the elements outside are "gifts belonging to the Church of Christ" that impel "toward catholic unity", and the Church of Christ is present only "to the extent that" they are found. Even so, Pius XII says the Church of Christ *is* the Roman Church, while John Paul II says that the one Church of Christ is "effectively present" in communities outside her.

> **Objection:** Rome's doctrinal office declared: "The use of this expression, which indicates the full identity of the Church of Christ with the Catholic Church, does not change the doctrine on the Church" (CDF, *Responses to Some Questions regarding Certain Aspects of the Doctrine on the Church*, 2007, third question).

> **Answer:** a declaration that there is no contradiction does not remove the words. The same document, in its answer to the second question, grants that "the Church of Christ is present and operative in the churches and ecclesial Communities not yet fully in communion with the Catholic Church, on account of the elements of sanctification and truth that are present in them". Presence in bodies outside the Catholic Church is not identity with her. Cardinal Ratzinger, defending the Council in 2000, granted that "the Council differs from the formula of Pius XII", and wrote: "Because sin is a contradiction, this

> difference between *subsistit* and *est* cannot be fully resolved from the logical viewpoint." He attributes the gap to the division of Christians, not to an error of the Council, but he concedes that the gap exists.

4.2 Who are members of the Body

BEFORE · *Mystici Corporis* §22:
"**Actually only those are to be included as members of the Church who have been baptized and profess the true faith**, and who have not been so unfortunate as to separate themselves from the unity of the Body, or been excluded by legitimate authority for grave faults committed. 'For in one spirit' says the Apostle, 'were we all baptized into one Body, whether Jews or Gentiles, whether bond or free.' As therefore in the true Christian community there is only one Body, one Spirit, one Lord, and one Baptism, so there can be only one faith. And therefore, if a man refuse to hear the Church, let him be considered - so the Lord commands - as a heathen and a publican. **It follows that those who are divided in faith or government cannot be living in the unity of such a Body**, nor can they be living the life of its one Divine Spirit."

Context: Pius XII is defining who belongs to the Body. The next paragraph (§23) adds that sinners remain members, because "not every sin, however grave it may be, is such as of its own nature to sever a man from the Body of the Church, as does schism or heresy or apostasy."

AFTER · *Unitatis Redintegratio* §3 (1964):
"The children who are born into these Communities and who grow up believing in Christ cannot be accused of the sin involved in the separation, and the Catholic Church embraces upon them as brothers, with respect and affection. For men who believe in Christ and have been truly baptized are in communion with the Catholic Church even though this communion is imperfect. The differences that exist in varying degrees between them and the Catholic Church - whether in doctrine and sometimes in discipline, or concerning the structure of the Church - do indeed create many obstacles, sometimes serious ones, to full ecclesiastical communion. The ecumenical movement is striving to overcome these obstacles. But even in spite of them it remains true that **all who have been justified by faith in Baptism are members of Christ's body**, and have a right to be called Christian, and so are correctly accepted as brothers by the children of the Catholic Church."

Context: the Council is speaking of communities separated "from full communion with the Catholic Church" and of those born into them, who are not guilty of the separation. For "members of Christ's body" it cites the Council of Florence's decree for the Armenians (*Exultate Deo*).

The contradiction: those "divided in faith" are not members. Now all the validly baptized, including Protestants, are "members of Christ's body", "in spite of" the differences "in doctrine". The Council speaks of those not guilty of the separation, but *Mystici Corporis* does not make membership depend on guilt. It requires that the baptized "profess the true faith".

4.3 Separated communities and salvation

BEFORE · Pius XI, *Mortalium Animos* §10 (1928):
"So, Venerable Brethren, it is clear why this Apostolic See has never allowed its subjects to take part in the assemblies of non-Catholics: for the union of Christians can only be promoted by promoting the return to the one true Church of Christ of those who are separated from it, for in the past they have unhappily left it. … For since the mystical body of Christ, in the same manner as His physical body, is one, compacted and fitly joined together, it were foolish and out of place to say that the mystical body is made up of members which are disunited and scattered abroad: **whosoever therefore is not united with the body is no member of it, neither is he in communion with Christ its head.**"

Context: the omitted sentences quote St Cyprian on the Church's incorruptible unity. The next paragraph (§11) adds that "in this one Church of Christ no man can be or remain who does not accept, recognize and obey the authority and supremacy of Peter and his legitimate successors".

AFTER · *Unitatis Redintegratio* §3:
"The brethren divided from us also use many liturgical actions of the Christian religion. These most certainly can truly engender a life of grace in ways that vary according to the condition of each Church or Community. These liturgical actions must be regarded as capable of giving access to the community of salvation. It follows that **the separated Churches and Communities as such**, though we believe them to be deficient in some respects, **have been by no means deprived of significance and importance in the mystery of salvation. For the Spirit of Christ has not refrained from using them as means of salvation** which derive their efficacy from the very fullness of grace and truth entrusted to the Church. Nevertheless, our separated brethren, whether considered as individuals or as Communities and Churches, are not blessed with that unity which Jesus Christ wished to bestow on all those who through Him were born again into one body … For it is only through Christ's Catholic Church, which is 'the all-embracing means of salvation,' that they can benefit fully from the means of salvation."

Context: the Council has just said that the elements of the Church found outside her "belong by right to the one Church of Christ". The passage ends by saying that the fullness of the means of salvation is found only in the Catholic Church.

The contradiction: outside the Body there is no communion with Christ the Head. Now the separated communities *as such* are means of salvation. The Council's qualifiers say that these communities are "deficient", that their efficacy derives from the fullness "entrusted to the Church", and that salvation's means are had "fully" only through her. None of them withdraws the claim at issue: that the Spirit of Christ uses the separated communities, as communities, as means of salvation.

What the Church defined on this point:

DEFINED · Council of Florence, *Cantate Domino* (Decree for the Copts, 4 February 1442): "**It firmly believes, professes and preaches that all those who are outside the catholic church, not only pagans but also Jews or heretics and schismatics, cannot share in eternal life** and will go into the everlasting fire which was prepared for the devil and his angels, unless they are joined to the catholic church before the end of their lives; **that the unity of the ecclesiastical body is of such importance that only for those who abide in it do the church's sacraments contribute to salvation** and do fasts, almsgiving and other works of piety and practices of the Christian militia produce eternal rewards; and that nobody can be saved, no matter how much he has given away in alms and even if he has shed his blood in the name of Christ, unless he has persevered in the bosom and the unity of the catholic church."

Context: the decree is a profession of faith for the Coptic Church on its reunion with Rome. Earlier in the same decree, on the Trinity, the council "condemns, reproves, anathematizes and declares to be outside the body of Christ, which is the church, whoever holds opposing or contrary views". This passage itself is in the form of a profession ("firmly believes, professes and preaches"), not of a canon.

DEFINED · Fourth Lateran Council (1215), constitution 1, "On the Catholic faith": "**There is indeed one universal church of the faithful, outside of which nobody at all is saved**, in which Jesus Christ is both priest and sacrifice. His body and blood are truly contained in the sacrament of the altar under the forms of bread and wine…"

Context: this is the profession of faith with which the council's decrees open.

Florence says the Church's sacraments "contribute to salvation" only "for those who abide in" her unity. The Council says the Spirit uses the separated communities "as such" as "means of salvation". The Council's own explanation, that their efficacy derives from the fullness "entrusted to the Church", speaks of the source of the means; Florence speaks of who benefits from them.

4.4 Joining non-Catholics in worship

BEFORE · *Mortalium Animos* §8:
"This being so, it is clear that **the Apostolic See cannot on any terms take part in their assemblies, nor is it anyway lawful for Catholics either to support or to work for such enterprises**; for if they do so they will be giving countenance to a false Christianity, quite alien to the one Church of Christ. Shall We suffer, what would indeed be iniquitous, the truth, and a truth divinely revealed, to be made a subject for compromise? For here there is question of defending revealed truth."

Context: "their assemblies" are the pan-Christian conferences described in §§3–7. These sought the union "of all who call themselves Christians", on the view that the Church of Christ is "divided into sections".

Code of Canon Law (1917), canon 1258: "§1. **Haud licitum est fidelibus quovis modo active assistere seu partem habere in sacris acatholicorum.** §2. Tolerari potest praesentia passiva seu mere materialis, civilis officii vel honoris causa, ob gravem rationem ab Episcopo in casu dubii probandam, in acatholicorum funeribus, nuptiis similibusque sollemniis, dummodo perversionis et scandali periculum absit."
(§1. It is not lawful for the faithful *in any way* to assist actively at, or take part in, non-Catholic worship. §2. Passive or merely material presence may be tolerated, for the sake of civil duty or honour, for a grave reason to be approved by the bishop in case of doubt, at non-Catholic funerals, weddings and similar solemnities, provided there is no danger of perversion or scandal. *Author's translation.*)

Context: §2 is the only exception the canon allows. It permits passive presence for civil reasons; it allows no active part, and it makes no exception for the Eastern Churches.

AFTER · *Unitatis Redintegratio* §15:

"These Churches, although separated from us, possess true sacraments, above all by apostolic succession, the priesthood and the Eucharist, whereby they are linked with us in closest intimacy. Therefore **some worship in common (communicatio in sacris), given suitable circumstances and the approval of Church authority, is not only possible but to be encouraged**."

Context: §15 concerns the separated Eastern Churches only. It has just praised their Eucharist, through which "the Church of God is built up and grows in stature".

Directory for Ecumenism §122 (1993): "Between the Catholic Church and the Eastern Churches not in full communion with it, there is still a very close communion in matters of faith. Moreover, 'through the celebration of the Eucharist of the Lord in each of these Churches, the Church of God is built up and grows in stature' and 'although separated from us, these Churches still possess true sacraments, above all—by apostolic succession—the priesthood and the Eucharist…'. This offers ecclesiological and sacramental grounds, according to the understanding of the Catholic Church, for **allowing and even encouraging some sharing in liturgical worship, even of the Eucharist, with these Churches**, 'given suitable circumstances and the approval of church authorities'. It is recognized, however, that Eastern Churches, on the basis of their own ecclesiological understanding, may have more restrictive disciplines in this matter, which others should respect."

Context: this opens the Directory's rules for sharing with the Eastern Churches. §123 then allows Catholics who cannot reach a Catholic minister to receive Penance, the Eucharist and Anointing from an Eastern minister, and §125 allows the reverse.

The contradiction: active part in non-Catholic worship, forbidden "in any way", becomes "to be encouraged", "even of the Eucharist". The permission concerns the Eastern Churches and requires "suitable circumstances" and approval, but canon 1258 made no such exception: it allowed only passive presence. Under the old Code, one who took part in non-Catholic worship was suspect of heresy: "Qui quoquo modo haeresis propagationem sponte et scienter iuvat, aut qui communicat in divinis cum haereticis contra praescriptum can. 1258, suspectus de haeresi est" (whoever in any way spontaneously and knowingly helps the spread of heresy, or who takes part in divine worship with heretics against the prescription of canon 1258, is suspect of heresy; canon 2316, author's translation). John Paul II, recalling the common prayer of his journeys, asked: "And how could I ever forget taking part in the Eucharistic Liturgy in the Church of Saint George at the Ecumenical Patriarchate (30 November 1979), and the service held in Saint Peter's Basilica during the visit to Rome of my Venerable Brother, Patriarch Dimitrios I (6 December 1987)?" (*Ut Unum Sint* §24).

> **Objection:** prayer and worship are not the same. The Council allowed Catholics to pray with other Christians; it did not allow them to worship with them.

> **Answer:** the distinction is real, and the Council itself makes it. *Unitatis Redintegratio* §8 first says: "In certain special circumstances, such as the prescribed prayers 'for unity,' and during ecumenical gatherings, it is allowable, indeed desirable that Catholics should join in prayer with their separated brethren." It then turns to something else: "Yet worship in common (*communicatio in sacris*) is not to be

> considered as a means to be used indiscriminately for the restoration of Christian unity." So the contradiction does not rest on common prayer. It rests on §15, where the Council encourages that worship in common itself, and on the 1993 Directory, which extends it "even of the Eucharist". The Church before the Council did allow limited common prayer. The Holy Office in 1949 ruled: "Although in all these meetings and conferences any communication whatsoever in worship must be avoided, yet the recitation in common of the Lord's Prayer or of some prayer approved by the Catholic Church, is not forbidden for opening or closing the said meetings" (Instruction *Ecclesia Catholica*, V). Bishops could permit such meetings only on condition "That communicatio in sacris be entirely avoided" (IV). What it forbade is exactly what was later encouraged.

Even common prayer is not a neutral act. St Thomas teaches: "Now man shows reverence to God by means of prayer, in so far as he subjects himself to Him, and by praying confesses that he needs Him as the Author of his goods. Hence it is evident that prayer is properly an act of religion." He adds that "after devotion which belongs to the will, prayer which belongs to the intellective part is the chief of the acts of religion" (*Summa* II-II q.83 a.3 and ad 1). That is why the Church before the Council kept even common prayer within strict limits.

> **Objection:** this is discipline, and the Church may change her discipline.

> **Answer:** the prohibition protects a truth of faith: that worship professes the faith of those who join in it. Fr Brian Harrison, who defends the Council, grants that "in this practical, disciplinary respect, a comparison between MA and UR reveals an undeniable and very marked change of direction — indeed, practically a U-turn". He denies that there is a contradiction of doctrine. But Pius XI did not give a merely prudential reason for his prohibition. He said that Catholics who take part "will be giving countenance to a false Christianity, quite alien to the one Church of Christ", and that "here there is question of defending revealed truth" (*Mortalium Animos* §8). A universal law that leads Catholics into what the Church condemned on those grounds is exactly what Principle 1 rules out.

4.5 Other religions

BEFORE · *Mortalium Animos* §2:

"For which reason conventions, meetings and addresses are frequently arranged by these persons, at which a large number of listeners are present, and at which all without distinction are invited to join in the discussion, both infidels of every kind, and Christians, even those who have unhappily fallen away from Christ or who with obstinacy and pertinacity deny His divine nature and mission. Certainly such attempts can nowise be approved by Catholics, founded as they are on **that false opinion which considers all religions to be more or less good and praiseworthy, since they all in different ways manifest and signify that sense which is inborn in us all, and by which we are led to God** and to the obedient acknowledgment of His rule. Not only are those who hold this opinion in error and deceived, but also in distorting the idea of true religion they reject it, and little by little. turn aside to naturalism and atheism, as it is called; from which it clearly follows that **one who supports those who hold these theories and attempt to realize them, is altogether abandoning the divinely revealed religion**."

Context: Pius XI is describing the meetings of those who hope that "the nations, although they differ among themselves in certain religious matters" will agree on "a common basis of the spiritual life". From §3 onwards he turns to the separate question of unity among Christians.

AFTER · *Nostra Aetate* §2 (1965):

"Likewise, other religions found everywhere try to counter the restlessness of the human heart, each in its own manner, by proposing 'ways,' comprising teachings, rules of life, and sacred rites. **The Catholic Church rejects nothing that is true and holy in these religions. She regards with sincere reverence those ways of conduct and of life, those precepts and teachings** which, though differing in many aspects from the ones she holds and sets forth, nonetheless often reflect a ray of that Truth which enlightens all men. Indeed, she proclaims, and ever must proclaim Christ 'the way, the truth, and the life' (John 14:6), in whom men may find the fullness of religious life, in whom God has reconciled all things to Himself. The Church, therefore, exhorts her sons, that through dialogue and collaboration with the followers of other religions, carried out with prudence and love and in witness to the Christian faith and life, they recognize, preserve and promote the good things, spiritual and moral, as well as the socio-cultural values found among these men."

Context: the paragraph has just described Hinduism and Buddhism. The reverence is for the "ways of conduct", "precepts and teachings" that reflect the Truth, not for the religions as a whole.

John Paul II, General Audience, 9 September 1998 §2: "It must first be kept in mind that **every quest of the human spirit for truth and goodness, and in the last analysis for God, is inspired by the Holy Spirit. The various religions arose precisely from this primordial human openness to God.** At their origins we often find founders who, with the help of God's Spirit, achieved a deeper religious experience. Handed on to others, this experience took form in the doctrines, rites and precepts of the various religions. In every authentic religious experience, the most characteristic expression is prayer. Because of the human spirit's constitutive openness to God's action of urging it to self-transcendence, we can hold that 'every authentic prayer is called forth by the Holy Spirit, who is mysteriously present in the heart of every person' … **We experienced an eloquent manifestation of this truth at the World Day of Prayer for Peace on 27 October 1986 in Assisi**, and on other similar occasions of great spiritual intensity."

Context: the audience begins from *Nostra Aetate* §2 and the "seeds of the Word". In §4 John Paul II adds that the Church's respect for other religions "does not mean forgetting that Jesus Christ is the one Mediator and Saviour of the human race", nor "lessening our missionary efforts".

The contradiction: Pius XI condemns the opinion that all religions are "more or less good and praiseworthy, since they all in different ways manifest and signify that sense which is inborn in us all, and by which we are led to God", and he condemns supporting those who act on it. Taken alone, *Nostra Aetate* reveres only what is "true and holy" in other religions, and it insists that Christ must be proclaimed. Pius XI's condemnation is not aimed at that, so the sharper contrast is with John Paul II. He says that the religions themselves "arose precisely from this primordial human openness to God", that this quest is "inspired by the Holy Spirit", and that Assisi, where the religions were gathered to pray, was "an eloquent manifestation of this truth". He does not say in so many words that all religions are good. But he gives as the origin of the religions the very ground on which, according to Pius XI, the condemned opinion rested. And he presents as its manifestation an interreligious gathering, of the kind Pius XI said "can nowise be approved by Catholics". John Paul II also affirms that Christ is "the one Mediator". Pius XI's condemnation does not depend on denying that: it falls on the opinion and on supporting the meetings built upon it.

4.6 Trent's anathemas on justification

BEFORE · Council of Trent, Session 6 (1547), canons on justification:
"CANON IV.-If any one saith, that **man's free will moved and excited by God, by assenting to God exciting and calling, nowise co-operates towards disposing and preparing itself for obtaining the grace of Justification**; that it cannot refuse its consent, if it would, but that, as something inanimate, it does nothing whatever and **is merely passive; let him be anathema.** … CANON IX.-If any one saith, that **by faith alone the impious is justified; in such wise as to mean, that nothing else is required to co-operate** in order to the obtaining the grace of Justification, and that it is not in any way necessary, that he be prepared and disposed by the movement of his own will; **let him be anathema.**"

Context: these are among the 33 canons Trent attached to its decree on justification, written against the teaching of Luther and the Lutheran confessions.

AFTER · Lutheran World Federation and Catholic Church, *Joint Declaration on the Doctrine of Justification* (signed 31 October 1999):
"21. **According to Lutheran teaching, human beings are incapable of cooperating in their salvation**, because as sinners they actively oppose God and his saving action. Lutherans do not deny that a person can reject the working of grace. When they emphasize that **a person can only receive (mere passive) justification**, they mean thereby to exclude any possibility of contributing to one's own justification, but do not deny that believers are fully involved personally in their faith, which is effected by God's Word. … 26. **According to Lutheran understanding, God justifies sinners in faith alone (sola fide).** … 41. Thus the doctrinal condemnations of the 16th century, in so far as they relate to the doctrine of justification, appear in a new light: **The teaching of the Lutheran churches presented in this Declaration does not fall under the condemnations from the Council of Trent.**"

Context: §20, before it, gives the Catholic view that persons "cooperate" by consenting to God's action, a consent "itself an effect of grace". §26 adds that in "justification by faith alone" a distinction "but not a separation" is made between justification and the renewal of life that "necessarily follows". The *Official Common Statement* signed with it repeats §41 in the name of "the Lutheran World Federation and the Catholic Church".

The contradiction: Trent anathematises the teaching that the will "nowise co-operates" and "is merely passive", and that faith alone justifies so that nothing else need cooperate. The *Joint Declaration* presents as Lutheran teaching that human beings are "incapable of cooperating" and receive "mere passive" justification "in faith alone", and declares that this teaching, as presented, "does not fall under the condemnations from the Council of Trent".

> **Objection:** the Declaration does not lift the anathemas. It says they keep their seriousness, and only that the Lutheran teaching as now presented is not what Trent condemned:

"42. **Nothing is thereby taken away from the seriousness of the condemnations related to the doctrine of justification.** Some were not simply pointless. They remain for us 'salutary warnings' to which we must attend in our teaching and practice."

Context: §42 follows §41 directly.

Answer: the question is whether the teaching presented falls under the canons, and the words above are the words Trent condemned ("merely passive"; faith alone with nothing else cooperating). Rome's own official *Response* of 1998 had said that "it remains difficult to see how, in the current state of the presentation, given in the Joint Declaration, we can say that this doctrine on 'simul iustus et peccator' is not touched by the anathemas of the Tridentine decree on original sin and justification." A year later an *Annex* of clarifications was added, and both sides signed the statement that "the mutual condemnations of former times do not apply to the Catholic and Lutheran doctrines of justification as they are presented in the Joint Declaration". The text of §21 was not changed. The Declaration is an ecumenical agreement, not a dogmatic definition; it shows how the post-conciliar authorities treat Trent's anathemas, not a new definition of faith.

5. At the altar: Communion as the sign of unity in faith

The Eucharist is the sacrament of the Church's unity. St Thomas: "The Apostle says (1 Corinthians 10:17): 'For we, being many, are one bread, one body, all that partake of one bread': from which it is clear that the Eucharist is the sacrament of the Church's unity" (*Summa* III q.73 a.2). In the next article he adds that "the reality of the sacrament is the unity of the mystical body, without which there can be no salvation" (a.3). The Council of Trent, giving the reasons why Christ instituted the sacrament, says that He would have it "be a symbol of that one body whereof He is the head, and to which He would fain have us as members be united by the closest bond of faith, hope, and charity, that we might all speak the same things, and there might be no schisms amongst us" (Session 13, ch. 2; quoted in full at 5.3). To give Communion is to declare unity in faith. The post-conciliar Church now gives that sign to those who do not share the faith.

5.1 Sacraments for non-Catholics

BEFORE · Code of Canon Law (1917), canon 731:
"§1. Cum omnia Sacramenta Novae Legis, a Christo Domino nostro instituta, sint praecipua sanctificationis et salutis media, summa in iis opportune riteque administrandis ac suscipiendis diligentia et reverentia adhibenda est. §2. **Vetitum est Sacramenta Ecclesiae ministrare haereticis aut schismaticis, etiam bona fide errantibus eaque petentibus, nisi prius, erroribus reiectis, Ecclesiae reconciliati fuerint.**"
(§1. Since all the Sacraments of the New Law, instituted by Christ our Lord, are the chief means of sanctification and salvation, the greatest diligence and reverence is to be used in administering and receiving them fittingly and duly. §2. It is forbidden to give the sacraments of the Church to heretics or schismatics, *even those erring in good faith* who ask for them, unless they have first renounced their errors and been reconciled to the Church. *Author's translation.*)

Context: canon 731 opens the 1917 Code's book on the sacraments. §1 gives the reason for the rule in §2: the sacraments are the chief means of salvation and must be given with the greatest reverence.

AFTER · Code of Canon Law (1983), canon 844:
"§1. Catholic ministers administer the sacraments licitly to Catholic members of the Christian faithful alone, who likewise receive them licitly from Catholic ministers alone, without prejudice to the prescripts of §§2, 3, and 4 of this canon, and can. 861, §2. … §3. **Catholic ministers administer the sacraments of penance, Eucharist, and anointing of the sick licitly to members of Eastern Churches which do not have full communion with the Catholic Church if they seek such on their own accord and are properly disposed.** This is also valid for members of other Churches which in the judgment of the Apostolic See are in the same condition in regard to the sacraments as these Eastern Churches."

Context: §1 keeps the general rule of "Catholic members … alone", but it names §§2–4 as exceptions. §2 (quoted at 5.2) lets Catholics receive from non-Catholic ministers. §4 admits other Christians only in danger of death or grave necessity, and only if they "manifest Catholic faith in respect to these sacraments". §3 sets neither of those conditions; it asks only that the Eastern Christian ask freely and be "properly disposed".

The contradiction: no sacraments without renouncing error and being reconciled. Now the Eucharist is given lawfully with neither. This is universal law, binding on the whole Church. Before the Council a schismatic could not even be *named* at the altar. Benedict XIV approved the instruction given to Greek Catholic priests: "Therefore where commemorations are customarily made in the sacred liturgy, the Roman Pontiff should be first commemorated, then one's own bishop and patriarch, provided they are Catholic. But if either or both of them are schismatic or heretic they should by no means be commemorated" (*Ex Quo* §9, 1756). Now he may *receive Communion* there.

> **Objection:** "properly disposed" means the same as renouncing error, so nothing has changed.
>
> **Answer:** the texts rule this out in five ways.

1. **The canon is about people who remain separated.** It applies to "members of Eastern Churches which do not have full communion with the Catholic Church". Someone who had renounced his errors and been reconciled would be a Catholic, and would not need this canon at all.
2. **Rome says they receive while still separated.** John Paul II distinguishes this from intercommunion: "In this case, in fact, the intention is to meet a grave spiritual need for the eternal salvation of an individual believer, not to bring about an intercommunion which remains impossible until the visible bonds of ecclesial communion are fully re-established. This was the approach taken by the Second Vatican Council when it gave guidelines for responding to Eastern Christians separated in good faith from the Catholic Church, who spontaneously ask to receive the Eucharist from a Catholic minister and are properly disposed" (*Ecclesia de Eucharistia* §45). Separated, and properly disposed, at the same time.
3. **Rome defines what makes them improperly disposed, and it is not their errors in general.** "These conditions, from which no dispensation can be given, must be carefully respected, even though they deal with specific individual cases, because the denial of one or more truths of the faith regarding these sacraments and, among these, the truth regarding the need of the ministerial priesthood for their validity, renders the person asking improperly disposed to legitimately receiving them" (*Ecclesia de Eucharistia* §46). Only truths about these sacraments count. An Orthodox Christian who rejects the primacy and infallibility of the Pope is still admitted.
4. **The minister is told to avoid any suggestion of proselytism.** The 1993 *Directory for Ecumenism* §125: "Catholic ministers may lawfully administer the sacraments of penance, Eucharist and the anointing of the sick to members of the Eastern Churches, who ask for these sacraments of their own free will and are properly disposed. In these particular cases also, due consideration should be given to the discipline of the Eastern Churches for their own faithful and any suggestion of proselytism should be avoided."
5. **The Council separates reconciliation from ecumenism.** "However, it is evident that, when individuals wish for full Catholic communion, their preparation and reconciliation is an undertaking which of its nature is distinct from ecumenical action. But there is no opposition between the two, since both proceed from the marvelous ways of God" (*Unitatis Redintegratio* §4). The Council sees no conflict between the two. But the 1993 *Directory for Ecumenism* (§§122–125) places the giving of these sacraments among its ecumenical norms, so they are given without reconciliation.

Canon 731 required two things, "erroribus reiectis" (errors rejected) and "Ecclesiae reconciliati" (reconciled to the Church). Canon 844 requires neither.

5.2 Catholics at the sacraments of non-Catholics

BEFORE · St Thomas Aquinas, *Summa* III q.82 a.9:

"As was said above (Article 5, Article 7), heretical, schismatical, excommunicate, or even sinful priests, although they have the power to consecrate the Eucharist, yet they do not make a proper use of it; on the contrary, they sin by using it. But **whoever communicates with another who is in sin, becomes a sharer in his sin**. Hence we read in John's Second Canonical Epistle (11) that 'He that saith unto him, God speed you, communicateth with his wicked works.' Consequently, it is not lawful to receive Communion from them, or to assist at their mass. Still there is a difference among the above, because **heretics, schismatics, and excommunicates, have been forbidden, by the Church's sentence, to perform the Eucharistic rite. And therefore whoever hears their mass or receives the sacraments from them, commits sin.** But not all who are sinners are debarred by the Church's sentence from using this power: and so, although suspended by the Divine sentence, yet they are not suspended in regard to others by any ecclesiastical sentence: consequently, until the Church's sentence is pronounced, it is lawful to receive Communion at their hands, and to hear their mass. … Reply to Objection 2. The unity of the mystical body is the fruit of the true body received. But those who receive or minister unworthily, are deprived of the fruit … And therefore, **those who belong to the unity of the Faith are not to receive the sacrament from their dispensing**."

Context: the article asks whether one may receive Communion or hear Mass from heretical, excommunicate or sinful priests. Thomas forbids it in principle for all of them, but the line he draws in practice is the Church's sentence: those under it may not be approached, while sinners not yet sentenced may. The omitted words are a gloss of St Augustine and a cross-reference.

AFTER · John Paul II, *Ecclesia de Eucharistia* §46 (2003), quoting *Ut Unum Sint* §46:

"It is a source of joy to note that Catholic ministers are able, in certain particular cases, to administer the sacraments of the Eucharist, Penance and Anointing of the Sick to Christians who are not in full communion with the Catholic Church but who greatly desire to receive these sacraments, freely request them and manifest the faith which the Catholic Church professes with regard to these sacraments. **Conversely, in specific cases and in particular circumstances, Catholics too can request these same sacraments from ministers of Churches in which these sacraments are valid.**"

Code of Canon Law (1983), canon 844 §2: "Whenever necessity requires it or true spiritual advantage suggests it, and provided that danger of error or of indifferentism is avoided, the Christian faithful for whom it is physically or morally impossible to approach a Catholic minister are permitted to **receive the sacraments of penance, Eucharist, and anointing of the sick from non- Catholic ministers in whose Churches these sacraments are valid**."

Context: John Paul II goes on to insist that these conditions "must be carefully respected", and that "Catholics may not receive communion in those communities which lack a valid sacrament of Orders". The canon is the law he is describing: it allows the practice only when a Catholic minister cannot be reached.

The contradiction: St Thomas holds that receiving the sacraments from a heretical or schismatic minister makes one "a sharer in his sin", that "those who belong to the unity of the Faith are not to receive the sacrament from their dispensing", and that, since the Church's sentence, it is a sin to do so. Now, by universal law, Catholics may ask schismatic ministers for them when a Catholic minister cannot be reached.

> **Objection:** St Thomas rests the prohibition on "the Church's sentence", and in the same article he allows Catholics to hear the Masses of sinful priests whom the Church has not sentenced. What the Church's law forbade, the Church's law may permit. Besides, an Orthodox priest born into schism may not be personally guilty of it.

> **Answer:** the objection is partly right, and this pair should not be made to say more than Thomas says. In this article the practical line between forbidden and allowed is the Church's sentence, and Thomas's reasons speak of ministers who sin by celebrating. So this pair, taken alone, shows the reversal of a standing law of the Church and of the reason Thomas gave for it. It does not show the contradiction of a defined doctrine. Two points remain. First, the sentence had been given, and it was general: "heretics and schismatics are subject to the censure of major excommunication" by the canons Benedict XIV cites (*Ex Quo* §23), and the 1917 Code still forbade any active part in their worship (canon 1258, at 4.4). Second, canon 844 §2 does not lift a sentence from particular men whose case has been judged. It permits, as general law, receiving the sacraments from the ministers of bodies that remain separated. Whether the Church can give such a universal law is the question of Principle 1, together with 5.3 below.

5.3 The sign of unity set aside

BEFORE · Council of Trent, Session 13, ch. 2:
"Wherefore, our Saviour, when about to depart out of this world to the Father, instituted this Sacrament, in which He poured forth as it were the riches of His divine love towards man, making a remembrance of his wonderful works; and He commanded us, in the participation thereof, to venerate His memory, and to show forth his death until He come to judge the world. And He would also that this sacrement should be received as the spiritual food of souls, whereby may be fed and strengthened those who live with His life who said, He that eateth me, the same also shall live by me; and as an antidote, whereby we may be freed from daily faults, and be preserved from mortal sins. He would, furthermore, have it be a pledge of our glory to come, and everlasting happiness, and thus be **a symbol of that one body whereof He is the head, and to which He would fain have us as members be united by the closest bond of faith, hope, and charity, that we might all speak the same things, and there might be no schisms amongst us.**"

Context: the chapter gives the reasons for which Christ instituted the Eucharist: a memorial of His death, food for the soul, an antidote to sin, a pledge of glory and, last, a symbol of the one Body united in faith.

AFTER · *Unitatis Redintegratio* §8 (Latin):
"Attamen communicationem in sacris considerare non licet velut medium indiscretim adhibendum ad Christianorum unitatem restaurandam. Quae communicatio a duobus principiis praecipue pendet: ab unitate Ecclesiae significanda, et a participatione in mediis gratiae. **Significatio unitatis plerumque vetat communicationem. Gratia procuranda quandoque illam commendat.** De modo concreto agendi, attentis omnibus circumstantiis temporum, locorum et personarum, prudenter decernat auctoritas episcopalis localis, nisi aliud a conferentia episcopali, ad normam propriorum statutorum, vel a Sancta Sede statuatur."
(Vatican English: "Yet worship in common (communicatio in sacris) is not to be considered as a means to be used indiscriminately for the restoration of Christian unity. There are two main principles governing the practice of such common worship: first, the bearing witness to the unity of the Church, and second, the sharing in the means of grace. **Witness to the unity of the Church very generally forbids common worship to Christians, but the grace to be had from it sometimes commends this practice.** The course to be adopted, with due regard to all the circumstances of time, place, and persons, is to be decided by local episcopal authority, unless otherwise provided for by the Bishops' Conference according to its statutes, or by the Holy See.")

Context: §8 has just allowed common prayer with separated Christians. Here it turns to worship in common: it keeps the general prohibition, but it allows the bishops to make exceptions for the sake of grace.

The contradiction: the Eucharist signifies unity in faith. Now the sign may "sometimes" be shared with those who lack that unity. John Paul II himself wrote: "It is not possible to give communion to a person who is not baptized or to one who rejects the full truth of the faith regarding the Eucharistic mystery. Christ is the truth and he bears witness to the truth (cf. Jn 14:6; 18:37); the sacrament of his body and blood does not permit duplicity" (*Ecclesia de Eucharistia* §38). And again: "Precisely because the Church's unity, which the Eucharist brings about through the Lord's sacrifice and by communion in his body and blood, absolutely requires full communion in the bonds of the profession of faith, the sacraments and ecclesiastical governance, it is not possible to celebrate together the same Eucharistic liturgy until those bonds are fully re-established" (§44). He draws that conclusion only for concelebration. In §45–46 he allows Communion to individuals who hold the faith about these sacraments but not the whole faith. The 1993 Directory does the same: "Thus Eucharistic communion is inseparably linked to full ecclesial communion and its visible expression"; yet "in certain circumstances, by way of exception, and under certain conditions, access to these sacraments may be permitted, or even commended, for Christians of other Churches and ecclesial Communities" (§129). The reason John Paul II gives in §44, however, is about the Eucharist itself and not about concelebration. If the unity it brings about "absolutely requires full communion in the bonds of the profession of faith", then to give it to one who lacks that communion is to give the sign without the reality.

The pope's name in the Canon of the Mass

The same principle explains why many traditional priests no longer name the conciliar claimants in the Mass. In the Canon the priest offers the Sacrifice "for Thy holy Catholic Church … together with Thy servant N. our Pope" (*una cum famulo tuo Papa nostro N.*). Benedict XIV explained what this naming means:

> Benedict XIV, *Ex Quo* §12 (1756): "But however it may be with this disputed point of ecclesiastical learning, it suffices Us to be able to state that **a commemoration of the supreme pontiff and prayers offered for him during the sacrifice of the Mass is considered, and really is, an affirmative indication which recognizes him as the head of the Church, the vicar of Christ, and the successor of blessed Peter, and is the profession of a mind and will which firmly espouses Catholic unity**. This was rightly noticed by Christianus Lupus in his work on the Councils: 'This commemoration is the chief and most glorious form of communion'."
>
> *Context:* Benedict XIV is explaining why the revised Greek Euchologion tells priests to name the Pope, and their own bishop and patriarch "provided they are Catholic" (§9). The "disputed point" is whether the early Greek Church named the Pope at Mass.
>
> §23: "Moreover heretics and schismatics are subject to the censure of major excommunication … But the sacred canons of the Church forbid public prayer for the excommunicated … Though this does not forbid prayer for their conversion, still **such prayer must not take the form of proclaiming their names in the solemn prayer during the sacrifice of the Mass**."
>
> *Context:* this explains the rule of §9. The omitted words are references to the canons.

Rome still teaches that the Eucharist is celebrated in union with the Pope:

> CDF, *Communionis Notio* §14 (1992): "The liturgy expresses this reality in various ways, showing, for example, that **every celebration of the Eucharist is performed in union not only with the proper Bishop, but also with the Pope**, with the episcopal order, with all the clergy, and with the entire people. Every valid celebration of the Eucharist expresses this universal communion with Peter and with the whole Church, or objectively calls for it, as in the case of the Christian Churches separated from Rome."
>
> *Context:* the paragraph teaches that the unity of the Eucharist and the unity of the episcopate "with Peter and under Peter" are "essentially interlinked realities". Its last clause allows that a valid Eucharist outside Catholic communion "calls for" communion with Peter without expressing it.

That qualifier concerns Churches that do not name the Pope. Where the priest does name a man as "our Pope", the naming is the expression of communion with him, which is what Benedict XIV says. The Roman Missal's own rubric provides for the case of a vacancy: "Sede autem vacante verba praedicta omittuntur" (when the See is vacant, these words are omitted).

6. The 1968 rite for consecrating bishops

In 1968 Paul VI replaced the essential words of the rite by which bishops are consecrated. Because bishops ordain priests, the validity of this rite affects every sacrament that depends on the priesthood. The claim here is the moderate one: the new rite is at least *positively doubtful*, and the Church forbids relying on a doubtful sacrament.

6.1 The essential words

BEFORE · Pius XII, *Sacramentum Ordinis* §§4–5 (1947):
"Sacrorum Ordinum Diaconatus, Presbyteratus et Episcopatus materiam eamque unam esse manuum impositionem; formam vero itemque unam esse verba applicationem huius materiae determinantia, **quibus univoce significantur effectus sacramentales, — scilicet potestas Ordinis et gratia Spiritus Sancti,** — quaeque ab Ecclesia qua talia accipiuntur et usurpantur. … Denique in Ordinatione seu Consecratione Episcopali materia est manuum impositio quae ab Episcopo consecratore fit. Forma autem constat verbis « Praefationis », quorum haec sunt essentialia ideoque ad valorem requisita: « **Comple in Sacerdote tuo ministerii tui summam**, et ornamentis totius glorificationis instructum coelestis unguenti rore sanctifica »."
(The matter of the sacred Orders of diaconate, priesthood and episcopate is one and the same, the imposition of hands; and the form likewise is one, the words that determine the application of this matter, **which univocally signify the sacramental effects, namely the power of Order and the grace of the Holy Spirit**, and which are accepted and used as such by the Church. … Finally, in episcopal ordination or consecration the matter is the imposition of hands by the consecrating bishop. The form consists of the words of the "Preface", of which these are essential and therefore required for validity: "**Complete in thy priest the fullness of thy ministry**, and, adorned with the ornaments of all glorification, sanctify him with the dew of heavenly anointing." Author's translation.)

Context: Pius XII is settling, by his supreme authority, which words are essential in each of the three Orders of the Roman rite. In §1 he recalls that "Ecclesiae nulla competat potestas in substantiam Sacramentorum" (the Church has no power over the substance of the sacraments); in §3 he adds that what the Church herself has established, such as the handing over of the instruments, "omnes norunt Ecclesiam quod statuit etiam mutare et abrogare valere" (all know the Church can also change and abrogate).

AFTER · Paul VI, *Pontificalis Romani* (1968):

"Quod ut rectius obtineretur, opportunum visum est e fontibus antiquis arcessere precationem consecratoriam quae in ea invenitur, quae vocatur Traditio Apostolica Hippolyti Romani, saeculo tertio ineunte scripta, quaeque, magna ex parte, in liturgia Ordinationis Coptorum et Syrorum occidentalium adhuc servatur. … Porro ex ceteris Supremi Magisterii documentis, ad Sacros Ordines pertinentibus, peculiari mentione dignam existimamus Constitutionem Apostolicam Sacramentum Ordinis … qua declaratur Sacrorum Ordinum Diaconatus, Presbyteratus et Episcopatus materiam eamque unam esse manuum impositionem: formam vero itemque unam esse verba applicationem huius materiae determinantia, **quibus univoce significantur effectus sacramentales** - scilicet potestas Ordinis et gratia Spiritus Sancti - quaeque ab Ecclesia qua talia accipiuntur et usurpantur. … Denique in Ordinatione Episcopi, materia est impositio manuum quae ab Episcopis consecrantibus, vel saltem a Consecratore principali, fit silentio super caput Electi ante precationem consecratoriam; forma autem constat verbis eiusdem precationis consecratoriae, quorum haec ad naturam rei pertinent, atque adeo ut actus valeat exiguntur: **Et nunc effunde super hunc Electum eam virtutem, quae a te est, Spiritum principalem**, quem dedisti dilecto Filio Tuo Iesu Christo, quem Ipse donavit sanctis Apostolis, qui constituerunt Ecclesiam per singula loca, ut sanctuarium tuum, in gloriam et laudem indeficientem nominis tui."

(To achieve this better, it seemed fitting to take from ancient sources the consecratory prayer found in what is called the Apostolic Tradition of Hippolytus of Rome, written at the beginning of the third century, which in great part is still preserved in the ordination liturgy of the Copts and the West Syrians. … Among the other documents of the supreme Magisterium on sacred Orders, We consider worthy of special mention the Apostolic Constitution *Sacramentum Ordinis* … which declares that the matter of the sacred Orders of diaconate, priesthood and episcopate is one and the same, the imposition of hands, and the form likewise is one, the words determining the application of this matter, **which univocally signify the sacramental effects**, namely the power of Order and the grace of the Holy Spirit, and which are accepted and used as such by the Church. … Finally, in the ordination of a bishop the matter is the imposition of hands, made in silence on the head of the elect by the consecrating bishops, or at least by the principal consecrator, before the consecratory prayer; the form consists of the words of the same consecratory prayer, of which these belong to the nature of the thing and are therefore required for the act to be valid: "**And now pour out upon this elect that power which is from you, the governing Spirit**, whom you gave to your beloved Son Jesus Christ, whom he bestowed on the holy Apostles, who established the Church in every place as your sanctuary, for the glory and unceasing praise of your name." Author's translation.)

Context: Paul VI's preamble quotes *Lumen Gentium* §21, that episcopal consecration confers "plenitudinem … Sacramenti Ordinis, quae … summum sacerdotium, sacri ministerii summa nuncupatur" (the fullness of the sacrament of Order, called the high priesthood, the summit of the sacred ministry). He says he declares the essential words "ad omnem controversiam tollendam" (to remove all controversy), since parts of the rite were added, deleted or changed. Only the one sentence above is declared essential. The rest of the new consecratory prayer, outside that sentence, asks that the bishop "summum sacerdotium tibi exhibeat sine reprehensione" (show forth to you the high priesthood without reproach), as quoted by Fr Cekada from the 1990 edition.

The contradiction: the old form names the priesthood (*Sacerdote*) and its fullness (*ministerii tui summam*). The new essential words name neither, yet Paul VI himself repeats Pius XII's rule that these words must signify the power of Order *univocally*. His preamble and the wider prayer do speak of the high priesthood, but those words are outside the sentence he declares necessary for validity.

What Trent defined about the power of a bishop:

> **ANATHEMA** · Council of Trent, Session 23 (15 July 1563), canon 7:
> "CANON VII.–**If any one saith, that bishops are not superior to priests; or, that they have not the power of confirming and ordaining**; or, that the power which they possess is common to them and to priests; or, that orders, conferred by them, without the consent, or vocation of the people, or of the secular power, are invalid; or, that those who have neither been rightly ordained, nor sent, by ecclesiastical and canonical power, but come from elsewhere, are lawful ministers of the word and of the sacraments; let him be anathema."
>
> *Context:* Session 23 is Trent's decree on the sacrament of Order. Canon 6 before it defines a hierarchy "by divine ordination instituted, consisting of bishops, priests, and ministers". The last clause of canon 7 is discussed in section 8.

Trent does not prescribe the words of the form. It defines what distinguishes a bishop: "the power of confirming and ordaining". Pius XII required the essential words to signify the power of Order *univocally*. The old form signified the fullness of the priesthood; the new essential sentence asks for the "governing Spirit", and says nothing of the power to ordain.

6.2 Invoking the Holy Spirit is not enough

BEFORE · Leo XIII, *Apostolicae Curae* §§24–25, 27 (1896), judging the Anglican rite:
"Although the signification ought to be found in the whole essential rite, that is to say, in the 'matter and form', it still pertains chiefly to the 'form'; since the 'matter' is the part which is not determined by itself, but which is determined by the 'form'. And this appears still more clearly in the Sacrament of Order, the 'matter' of which, in so far as we have to consider it in this case, is the imposition of hands, which, indeed, by itself signifies nothing definite, and is equally used for several Orders and for Confirmation. But the words which until recently were commonly held by Anglicans to constitute the proper form of priestly ordination namely, **'Receive the Holy Ghost,' certainly do not in the least definitely express the sacred Order of Priesthood (sacerdotium) or its grace and power**, which is chiefly the power 'of consecrating and of offering the true Body and Blood of the Lord' … In vain has help been recently sought for the plea of the validity of Anglican Orders from the other prayers of the same Ordinal. For, to put aside other reasons which show this to be insufficient for the purpose in the Anglican rite, let this argument suffice for all. From them has been deliberately removed whatever sets forth the dignity and office of the priesthood in the Catholic rite. That 'form' consequently cannot be considered apt or sufficient for the Sacrament which omits what it ought essentially to signify."

Context: Leo XIII is examining the Anglican Ordinal's form. §26 adds that later words ("for the office and work of a priest") came too late; §28 applies the same judgment to bishops, whose preface "has been stripped of the words which denote the *summum sacerdotium*". In §§30–31 he also weighs the rite's "native character": its authors deliberately struck out every mention of sacrifice and priesthood. His verdict therefore rests both on the indeterminate form and on a surrounding rite purged of the priesthood.

AFTER · *Pontificalis Romani* (1968), the essential petition:
"Et nunc **effunde super hunc Electum eam virtutem, quae a te est, Spiritum principalem**, quem dedisti dilecto Filio Tuo Iesu Christo, quem Ipse donavit sanctis Apostolis …" (And now **pour out upon this elect that power which is from you, the governing Spirit**, whom you gave to your beloved Son Jesus Christ, whom he bestowed on the holy Apostles … Author's translation.)

Context: this is the sentence Paul VI declares necessary for validity (6.1). Dom Bernard Botte, who led the study group that drafted the rite, explained *Spiritus principalis*: "The bishop is the ruler of the Church. Hence the choice of the term *hegemonicos* is understandable: it is the gift of the Spirit apt for a leader. The best translation in French would perhaps be '*the Spirit of authority*.'" (*Notitiae*, 1974, quoted by Fr Pierre-Marie).

The contradiction: Leo XIII ruled that an invocation of the Spirit which does not specify the Order is not a sufficient form, because the laying on of hands "by itself signifies nothing definite". The core of the new form is a petition for the "governing Spirit". Fr Anthony Cekada documented that this phrase is used in the Coptic rite to install an abbot, who is a simple priest, and that in Scripture and the Fathers it is applied to King David and to other leaders: "Coptic abbots, King David, and virtuous leaders can all receive this governing Spirit." In fairness, the 1968 rite is not the Anglican Ordinal: its wider prayer was not stripped of the priesthood, and it does name the high priesthood. So the case rests on Pius XII's requirement that the essential words themselves be univocal, not on the surrounding rite.

> **Objection:** the meaning is fixed by the surrounding prayer, and the prayer comes from ancient Eastern rites (Fr Pierre-Marie OP, for the Society of St Pius X):

> "The utilization of the form that is in use in two certainly valid Eastern rites assures its validity. … To respond to the difficulty, two solutions can be offered: 1) Either the designation of the episcopal power by one of its properties (the capacity to receive jurisdiction) is sufficiently clear, in which case the essential part suffices; 2) **or else the essential part, insufficiently determined, is specified by the context, especially by the expression 'summum sacerdotium' [fullness of the priesthood] which follows.**"
>
> *Context:* this is from Fr Pierre-Marie's answer to the "defect of form" objection (*Sel de la Terre*, 2005, published in English by the SSPX). He holds the rite certainly valid, offers these two solutions as alternatives, and in the same section admits that "the Coptic rite does not mention in any way the 'completion of the priesthood' anywhere".

> **Answer:** the defender's second solution concedes that the essential part may be "insufficiently determined" on its own, which is the opposite of univocal; his first rests on reading "governing" as a property of the episcopate, the very point in dispute. As Fr Cekada replies, an argument from context "could never produce moral certitude that the new sacramental form was valid, only a probable opinion that it was", and a probable opinion may not be followed in conferring Orders (below). As for the Eastern rites, Fr Pierre-Marie himself says the Syrian comparison has to be made with "the consecration rite of a Maronite patriarch". Cekada shows that in the Maronite and Syrian rites the prayer closest to Paul VI's is "a *non-sacramental* prayer for installing a Patriarch, who is usually already a bishop when he is appointed", not the sacramental form for making a bishop.

Why doubt is enough. In 1679 the Holy Office condemned, as the first of a list of laxist moral propositions, this one:

> "**It is not illicit in conferring sacraments to follow a probable opinion regarding the value of the sacrament, the safer opinion being abandoned**, unless the law forbids it, convention or the danger of incurring grave harm. Therefore, one should not make use of probable opinions only in conferring baptism, sacerdotal or episcopal orders." (Denzinger 1151)
>
> *Context:* the whole sentence is the condemned proposition. Even the laxists conceded that probable opinions may not be used for baptism and Orders; Innocent XI went further and condemned the use of a probable opinion about validity in any sacrament.

In sacraments the safer course is obligatory. The Society of St Pius X accepts this principle. It holds the Latin form of 1968 valid in itself, but it still treats the question as open in particular cases, because of translations and the intention of the ministers:

> "**The question of episcopal consecration in the 1968 rite promulgated by Paul VI is even more delicate. The difficulty lies in the complete change of the wording of the form of episcopal consecration.** The very erudite article of Fr. Pierre-Marie, O.P., … establishes that the form is in itself valid. … However, this does not mean that this new rite of episcopal ordination is valid in every concrete case, for this could depend upon the translation, modifications (now that the principle of change has been accepted), and eventual defect of intention. … It is for this reason that the superiors have the right to insist on conditional re-ordination for any priest turning towards Tradition, and will only accept ordinations in the conciliar Church after having investigated both priestly and episcopal ordinations and established moral certitude." (Fr Peter Scott, *The Angelus*, September 2007)
>
> *Context:* Fr Scott writes for the SSPX to explain when priests ordained in the new rite are conditionally re-ordained. His doubts concern translations and intention, not the Latin form, which he accepts as valid. Fr Pierre-Marie likewise calls conditional re-ordination a "prudential measure" that "obviously does not weaken the conclusion of our study on the validity of the new rite in itself".

So even those who defend the rite do not claim the moral certitude for every case that the old rite gave. The sedevacantist case goes further: it holds that the Latin form itself fails Pius XII's test of univocity, and that this alone makes it positively doubtful.

7. A different religion, not a reformed one

How a religion is identified

St Robert Bellarmine's classic definition of the Church, as given by Fr John Hardon SJ:

> "Against this limitation, Bellarmine declared that 'according to our doctrine, the one and true Church is **the assembly of men, bound together by the profession of the same Christian faith, and by the communion of the same sacraments, under the rule of legitimate pastors, and in particular of the one Vicar of Christ on earth, the Roman Pontiff**.' From this definition, he says, 'we can easily decide what people belong to the Church and what people do not.' Each of the three elements excludes one class of persons."
>
> *Context:* Bellarmine (*De Ecclesia Militante* III.2) is answering the Protestant idea of an invisible Church "discernible to the eye of God alone". His definition tells who belongs to the Church: unbelievers and heretics fail the first bond, catechumens and the excommunicated the second, schismatics the third. Applying the same three bonds to a whole body is this paper's own step.

By those three bonds, a religion is identified by **what it professes, how it worships, and whom it obeys**.

Worship is itself a profession of faith:

Pius XII, *Mediator Dei* §§47–48 (1947):
"But this is not what the Church teaches and enjoins. **The worship she offers to God, all good and great, is a continuous profession of Catholic faith** and a continuous exercise of hope and charity, as Augustine puts it tersely. … In the sacred liturgy we profess the Catholic faith explicitly and openly, not only by the celebration of the mysteries, and by offering the holy sacrifice and administering the sacraments, but also by saying or singing the credo or Symbol of the faith … **The entire liturgy, therefore, has the Catholic faith for its content, inasmuch as it bears public witness to the faith of the Church.** … The sacred liturgy, consequently, does not decide or determine independently and of itself what is of Catholic faith. … But if one desires to differentiate and describe the relationship between faith and the sacred liturgy in absolute and general terms, it is perfectly correct to say, '*Lex credendi legem statuat supplicandi*' - let the rule of belief determine the rule of prayer."

Context: in §46 Pius XII rejects one use of "*Lex orandi, lex credendi*": the claim that the liturgy is "a kind of proving ground" which obliges the Church to approve a doctrine when it has produced fruits of piety. §47 opens "But this is not what the Church teaches" and states the true relation. Worship professes the faith, and belief governs prayer, not the reverse. This paper relies only on that true relation: a rite professes the faith of those who make it.

That is why Leo XIII judged the Anglican reform a change of religion and not merely of ceremony:

Leo XIII, *Apostolicae Curae* §30 (1896):
"For the full and accurate understanding of the Anglican Ordinal, besides what We have noted as to some of its parts, there is nothing more pertinent than to consider carefully the circumstances under which it was composed and publicly authorised. … the history of that time is sufficiently eloquent as to the animus of the authors of the Ordinal against the Catholic Church; as to the abettors whom they associated with themselves from the heterodox sects; and as to the end they had in view. **Being fully cognisant of the necessary connection between faith and worship, between 'the law of believing and the law of praying', under a pretext of returning to the primitive form, they corrupted the Liturgical Order in many ways to suit the errors of the reformers.** For this reason, in the whole Ordinal not only is there no clear mention of the sacrifice, of consecration, of the priesthood (*sacerdotium*), and of the power of consecrating and offering sacrifice but … every trace of these things which had been in such prayers of the Catholic rite as they had not entirely rejected, was deliberately removed and struck out."

Context: Leo XIII judges the Ordinal by the known heretical intent of its authors as well as by its text. §31 concludes that words in such a rite "cannot be taken in the same sense as they possess in the Catholic rite". Applying this test to the post-conciliar rites is this paper's argument; Leo XIII spoke only of the Anglican Ordinal.

Pius XII had warned against the same appeal to antiquity:

> Pius XII, *Mediator Dei* §§63–64:
> "Just as obviously unwise and mistaken is the zeal of one who in matters liturgical would go back to the rites and usage of antiquity, discarding the new patterns introduced by disposition of divine Providence to meet the changes of circumstances and situation. **This way of acting bids fair to revive the exaggerated and senseless antiquarianism to which the illegal Council of Pistoia gave rise.** It likewise attempts to reinstate a series of errors which were responsible for the calling of that meeting …"
>
> *Context:* Pius XII is reproving private individuals who restore ancient forms on their own authority (§62: "one would be straying from the straight path were he to wish the altar restored to its primitive tableform"). He also teaches (§58) that "the Sovereign Pontiff alone enjoys the right … to introduce and approve new rites, as also to modify those he judges to require modification". The warning is against antiquarianism, not against papal reform as such.

Sections 3–6 showed the change in what is professed. The following show the change in the profession itself and in worship.

7.1 The meaning of dogma

BEFORE · Vatican I, *Dei Filius* ch. 4 §§13–14 (1870):
"For the doctrine of the faith which God has revealed is put forward not as some philosophical discovery capable of being perfected by human intelligence, but as a divine deposit committed to the spouse of Christ to be faithfully protected and infallibly promulgated. Hence, too, **that meaning of the sacred dogmas is ever to be maintained which has once been declared by holy mother church, and there must never be any abandonment of this sense under the pretext or in the name of a more profound understanding.** May understanding, knowledge and wisdom increase as ages and centuries roll along, and greatly and vigorously flourish, in each and all, in the individual and the whole church: but this only in its own proper kind, that is to say, **in the same doctrine, the same sense, and the same understanding**."

Context: the Council is explaining how faith and reason relate. It allows real growth in understanding (the *Crescat* of St Vincent of Lérins), but only "in the same sense"; what it forbids is abandoning a defined meaning in the name of deeper understanding.

AFTER · John Paul II, *Ecclesia Dei* §4 (1988), on Archbishop Lefebvre:
"The *root* of this schismatic act can be discerned in **an incomplete and contradictory notion of Tradition. Incomplete, because it does not take sufficiently into account the *living* character of Tradition**, which, as the Second Vatican Council clearly taught, 'comes from the apostles and progresses in the Church with the help of the Holy Spirit. There is a growth in insight into the realities and words that are being passed on. …' But especially contradictory is a notion of Tradition which opposes the universal Magisterium of the Church possessed by the Bishop of Rome and the Body of Bishops."
Cardinal Arthur Roche, Prefect for Divine Worship, BBC Radio 4, 19 March 2023 (as transcribed by Dr Joseph Shaw): "**You know the theology of the Church has changed.** Whereas before the priest represented, at a distance, all the people. They were channelled, as it were, through this person who alone was celebrating the Mass. It is not only the priest who celebrates the liturgy, but also those who are baptised with him. And that is an enormous statement to make."

Context: John Paul II is explaining why the 1988 episcopal consecrations were a schismatic act. His "living Tradition" quotes *Dei Verbum* §8 on "growth in insight", and his footnote also cites *Dei Filius* ch. 4 (DS 3020), the passage above. Cardinal Roche was explaining to the BBC why the old Mass is restricted. The change he names concerns who celebrates the liturgy. Dr Shaw, who transcribed him, argues that the teaching Roche points to (*Sacrosanctum Concilium* §48) rests on pre-conciliar papal texts.

The contradiction: taken on its own, *Ecclesia Dei*'s appeal to "growth in insight" does not contradict Vatican I, which also allows growth "in the same sense". The conflict lies in its use. "Living Tradition" was invoked to condemn the bishop whose objection was that defined meanings had been abandoned (sections 3–4). A Roman prefect now says outright that "the theology of the Church has changed", on who offers the Mass.

7.2 The sworn profession of faith

BEFORE · Oath against Modernism (1910):
"Fourthly, I sincerely hold that the doctrine of faith was handed down to us from the apostles through the orthodox Fathers in exactly the same meaning and always in the same purport. Therefore, **I entirely reject the heretical' misrepresentation that dogmas evolve and change from one meaning to another different from the one which the Church held previously.** … The purpose of this is, then, not that dogma may be tailored according to what seems better and more suited to the culture of each age; rather, that **the absolute and immutable truth preached by the apostles from the beginning may never be believed to be different, may never be understood in any other way.**"

Context: the oath was "to be sworn to by all clergy, pastors, confessors, preachers, religious superiors, and professors in philosophical-theological seminaries". It accepts every definition of the Church, rejects the specific modernist theses one by one, and submits to *Pascendi* and *Lamentabili*.

AFTER · Congregation for the Doctrine of the Faith, 17 July 1967:
"**Formula to adopt from now on in cases in which the Profession of Faith is prescribed by law in substitution of the Tridentine formula and the oath against modernism** … I also firmly accept and retain each and every truth regarding the doctrine of faith and morals, whether solemnly defined by the Church or asserted and declared with the ordinary Magisterium, as well as those doctrines proposed by the same Magisterium, above all those which regard the mystery of the Holy Church of Christ, the Sacraments, the Sacrifice of the Mass, as well as the Primacy of the Roman Pontiff."

Context: this is the document's title and its closing clause. Between them it gives the Nicene Creed in full. The new formula keeps a general acceptance of all defined and ordinarily taught doctrine.

The contradiction: two years after the Council, the legally required profession of faith was replaced. The new formula still accepts all Church doctrine in general terms, but the sworn rejection of the evolution of dogma, and of each modernist thesis, was dropped.

7.3 Condemning the modern errors

BEFORE · Pius X, *Pascendi* §39 (1907):
"And now, can anybody who takes a survey of the whole system be surprised that We should define it as **the synthesis of all heresies**? Were one to attempt the task of collecting together all the errors that have been broached against the faith and to concentrate the sap and substance of them all into one, he could not better succeed than the Modernists have done. Nay, they have done more than this, for, as we have already intimated, their system means **the destruction not of the Catholic religion alone but of all religion**."
Pius IX, *Quanta Cura* §6 (1864): "Amidst, therefore, such great perversity of depraved opinions, we, well remembering our Apostolic Office … have thought it right again to raise up our Apostolic voice. Therefore, **by our Apostolic authority, we reprobate, proscribe, and condemn all the singular and evil opinions and doctrines severally mentioned in this letter**, and will and command that they be thoroughly held by all children of the Catholic Church as reprobated, proscribed and condemned."

Context: Pius X has just finished setting out the modernist system, including its programme to reform philosophy, theology, worship and Church government (§38). Pius IX has just listed the errors of naturalism and liberalism, including the theory that society should be governed without regard to religion.

AFTER · Paul VI, closing address of Vatican II, 7 December 1965 (vatican.va English):
"Secular humanism, revealing itself in its horrible anti-clerical reality has, in a certain sense, defied the council. **The religion of the God who became man has met the religion (for such it is) of man who makes himself God. And what happened? Was there a clash, a battle, a condemnation? There could have been, but there was none.** The old story of the Samaritan has been the model of the spirituality of the council. A feeling of boundless sympathy has permeated the whole of it. … But we call upon those who term themselves modern humanists, and who have renounced the transcendent value of the highest realities, to give the council credit at least for one quality and to recognize our own new type of humanism: **we, too, in fact, we more than any others, honor mankind.** … Errors were condemned, indeed, because charity demanded this no less than did truth, but for the persons themselves there was only warning, respect and love."
Official Latin: "Religio, id est cultus Dei, qui homo fieri voluit, atque religio - talis enim est aestimanda - id est cultus hominis, qui fieri vult Deus, inter se congressae sunt. Quid tamen accidit? **Certamen, proelium, anathema? Id sane haberi potuerat, sed plane non accidit.** … nam nos etiam, immo nos prae ceteris, **hominis sumus cultores**." (The religion, that is the worship, of God who willed to become man, and the religion, for so it must be judged, that is the worship of man who wills to become God, have met. What happened? Conflict, battle, anathema? That could have happened, but it plainly did not. … for we too, indeed we more than any others, are **worshippers of man**. Author's translation.)

Context: Paul VI is describing the "religious meaning" of the Council and its turn to the modern world. He says the Council looked at man "very much more upon this pleasant side", and he concedes that "errors were condemned", while "for the persons themselves there was only warning, respect and love".

The contradiction: the popes met the religion of man with solemn condemnation. Paul VI says that this time there was no anathema, though "errors were condemned" in general terms. In the Latin he calls the Church, more than any others, *hominis cultores*, using the same word (*cultus*) he has just used for the religion of man (*cultus hominis*).

> **Objection:** in the same address Paul VI turns this humanism toward God: "our humanism becomes Christianity, our Christianity becomes centered on God".

> **Answer:** the address says both things, and the reader should see both:

> Paul VI, closing address, 7 December 1965 (vatican.va English):
> "[Our religion] gives this interpretation in virtue of its knowledge of God: **a knowledge of God is a prerequisite for a knowledge of man** as he really is, in all his fullness … Consequently, if we remember … how in everyone we can and must recognize the countenance of Christ … and if we can and must recognize in Christ's countenance the countenance of our heavenly Father … our humanism becomes Christianity, our Christianity becomes centered on God; in such sort that we may say, to put it differently: **a knowledge of man is a prerequisite for a knowledge of God.** Would not this council, then, which has concentrated principally on man, be destined to propose again to the world of today the ladder leading to freedom and consolation? Would it not be, in short, **a simple, new and solemn teaching to love man in order to love God**? To love man, we say, not as a means but as the first step toward the final and transcendent goal which is the basis and cause of every love."
>
> *Context:* these are the closing paragraphs of the address, in which Paul VI sums up "the ultimate religious meaning" of the Council. The Latin of the reversed sentence reads "opus esse cognoscere hominem, ut cognoscatur Deus" (it is necessary to know man in order that God may be known).

Paul VI first affirms that knowledge of God comes before knowledge of man. He then sums up the Council the other way round: knowledge of man as the prerequisite for knowing God, and love of man as "the first step" to God. The Council's ladder runs from man to God, and that is the order the address presents as the Council's "new" teaching.

7.4 Changing the received rites

BEFORE · Council of Trent, Session 7, canon 13:
"If any one saith, that **the received and approved rites of the Catholic Church**, wont to be used in the solemn administration of the sacraments, may be contemned, or without sin be omitted at pleasure by the ministers, or **be changed, by every pastor of the churches, into other new ones**; let him be anathema."
Pius XII, *Sacramentum Ordinis* §1 (1947): "Neque his a Christo Domino institutis Sacramentis Ecclesia saeculorum cursu alia Sacramenta substituit vel substituere potuit, cum … septem Novae Legis Sacramenta sint omnia a Iesu Christo Domino Nostro instituta et **Ecclesiae nulla competat potestas in substantiam Sacramentorum**, id est in ea quae, testibus divinae revelationis fontibus, ipse Christus Dominus in signo sacramentali servanda statuit." (Nor has the Church in the course of the centuries substituted, nor could she substitute, other sacraments for these instituted by Christ the Lord, since … the seven sacraments of the New Law were all instituted by Jesus Christ our Lord, and **the Church has no power over the substance of the sacraments**, that is, over those things which, as the sources of divine revelation attest, Christ the Lord himself determined should be kept in the sacramental sign. Author's translation.)

Context: Trent's canon is among the canons on the sacraments in general. On its face it condemns ministers and "every pastor" who changes the received rites at will; defenders of the reform read it as aimed at private innovation, not at the Pope. Pius XII adds (§3) that what the Church herself has established in a rite she may change.

AFTER · Paul VI, *Divinae Consortium Naturae* (1971), on Confirmation:
"Ad eum finem Nos in hac recognitione **includi voluimus etiam ea, quae ad ipsam essentiam ritus confirmande [sic] pertinent**, per quem christifideles ut Donum accipiunt Spiritum Sanctum. … Quod ad verba attinet, quae in chrismatione proferuntur, dignitatem venerabilis formulae, quae in Ecclesia Latina adhibetur, aequa aestimatione perpendimus quidem; ei tamen praeferendam censemus antiquissimam formulam ritus Byzantini propriam …" (To that end **We wished to include in this revision also the things that pertain to the very essence of the rite** of Confirmation, by which the faithful receive the Holy Spirit as Gift. … As to the words spoken in the anointing, We have indeed weighed fairly the dignity of the venerable formula used in the Latin Church; yet We judge that the very ancient formula proper to the Byzantine rite is to be preferred … Author's translation.) *Sacram Unctionem Infirmorum* (1972), on Extreme Unction: "All these elements had to be taken into consideration in revising the rite of Sacred Anointing, in order better to adapt to present-day conditions those elements which were subject to change. **We thought fit to modify the sacramental formula** in such a way that, in view of the words of Saint James, the effects of the sacrament might be better expressed."

Context: Paul VI takes the new Confirmation form, "Accipe signaculum doni Spiritus Sancti", from the Byzantine rite, rendering it "fore [fere] verbum pro verbo" (almost word for word). He presents the change to Anointing as touching only "those elements which were subject to change".

The contradiction: in the years after 1968 the sacramental rites were rewritten, and for Orders, Confirmation and Anointing Paul VI changed the essential form itself, what he calls "the very essence of the rite". For Anointing he said he changed only what was "subject to change", and for Confirmation he adopted a form already used in the East. The objection stands where a new form fails to signify what Christ requires; for episcopal consecration, that is the case made in section 6.

7.5 What the Mass is

BEFORE · Council of Trent, Session 22, canons 1 and 3:
"CANON I.-If any one saith, that **in the mass a true and proper sacrifice is not offered to God**; or, that to be offered is nothing else but that Christ is given us to eat; let him be anathema. … CANON III.-If any one saith, that the sacrifice of the mass is only a sacrifice of praise and of thanksgiving; or, that it is **a bare commemoration of the sacrifice consummated on the cross, but not a propitiatory sacrifice**; or, that it profits him only who receives; and that it ought not to be offered for the living and the dead for sins, pains, satisfactions, and other necessities; let him be anathema."

Context: these are the canons of Trent's doctrine on the sacrifice of the Mass. Canon 2, between them, defines that by "Do this for the commemoration of me" Christ instituted the apostles priests and ordained that they and other priests should offer His body and blood.

AFTER · General Instruction of the Roman Missal (1969), article 7:
"**Cena dominica sive Missa est sacra synaxis seu congregatio populi Dei in unum convenientis, sacerdote praeside, ad memoriale Domini celebrandum.** Quare de sanctae Ecclesiae locali congregatione eminenter valet promissio Christi: 'Ubi sunt duo vel tres congregati in nomine meo, ibi sum in medio eorum' (Mt. 18, 20)."
(**The Lord's Supper, or Mass, is the sacred meeting or congregation of the people of God assembled, the priest presiding, to celebrate the memorial of the Lord.** For this reason, Christ's promise applies eminently to such a local gathering of holy Church: "Where two or three come together in my name, there am I in their midst" (Mt. 18:20). Translation as given by Rorate Caeli.)

Context: article 7 opens chapter II, "De structura Missae", of the 1969 Instruction, and is its definition of the Mass. Rorate Caeli, which published the 1969 text, notes that article 7 "would be amended in 1970, 1975, and 2002".

The contradiction: Trent defines a true and propitiatory sacrifice offered by priests. The new Missal's definition in article 7 named a supper, an assembly and a memorial, and applied to that assembly Christ's promise of His presence among two or three. It says nothing of sacrifice, or of the priest acting in the person of Christ. Rome rewrote the definition in 1970, but the rite it described was not changed. Cardinals Ottaviani and Bacci had written to Paul VI:

> "The accompanying critical study of the *Novus Ordo Missae*, the work of a group of theologians, liturgists and pastors of souls, shows quite clearly in spite of its brevity that if we consider the innovations implied or taken for granted, which may of course be evaluated in different ways, **the *Novus Ordo* represents, both as a whole and in its details, a striking departure from the Catholic theology of the Mass as it was formulated in Session XXII of the Council of Trent.** The 'canons' of the rite definitively fixed at that time provided an insurmountable barrier to any heresy directed against the integrity of the Mystery." (Letter of Cardinals Ottaviani and Bacci to Paul VI, 25 September 1969, §1)
>
> *Context:* the letter introduced the *Brief Critical Study of the Novus Ordo Missae* by a group of Roman theologians; according to the SSPX, Archbishop Lefebvre chaired the committee that drafted it. The study's first criticism is of article 7. The cardinals themselves grant that the innovations "may of course be evaluated in different ways".

Paul VI himself acknowledged how great the change was, while insisting that the substance was untouched:

Paul VI, General Audience, 19 November 1969:
"**Il cambiamento ha qualche cosa di sorprendente, di straordinario, essendo considerata la Messa come espressione tradizionale e intangibile del nostro culto religioso, dell'autenticità della nostra fede.** … Ma sia ben chiaro: **nulla è mutato nella sostanza della nostra Messa tradizionale.** … L'unità fra la Cena del Signore, il Sacrificio della croce, la rinnovazione rappresentativa dell'una e dell'altro nella Messa è inviolabilmente affermata e celebrata nel nuovo ordinamento, come nel precedente."
(**The change has something astonishing, extraordinary about it, since the Mass is regarded as the traditional and untouchable expression of our worship, of the authenticity of our faith.** … But let it be quite clear: **nothing has changed in the substance of our traditional Mass.** … The unity between the Lord's Supper, the Sacrifice of the Cross, and the representative renewal of both in the Mass is inviolably affirmed and celebrated in the new order, as in the former. Author's translation.)
Paul VI, General Audience, 26 November 1969: "Come altra volta dicevamo, sarà bene che ci rendiamo conto dei motivi, per i quali è introdotta **questa grave mutazione**: l'obbedienza al Concilio … E finalmente, a ben vedere, si vedrà che il disegno fondamentale della Messa rimane quello tradizionale, non solo nel suo significato teologico, ma altresì in quello spirituale" (As we said before, it will be good for us to understand the reasons why **this grave change** is introduced: obedience to the Council … And finally, on careful inspection, it will be seen that the fundamental design of the Mass remains the traditional one, not only in its theological meaning but also in its spiritual meaning. Author's translation.)

Context: in both audiences Paul VI is preparing the faithful for the new rite, in force in Italy from 30 November 1969. He calls it a "nuovo rito" that "tocca il nostro patrimonio religioso ereditario, che sembrava dover godere d'un'intangibile fissità" (touches our inherited religious patrimony, which seemed bound to enjoy an untouchable fixity). In the same breath he affirms that the substance, the sacrifice and the theological meaning are unchanged.

The pope's own words grant that the rite which had been held to be the "untouchable expression … of the authenticity of our faith" was being gravely changed. His assurance that nothing changed "in the substance" is exactly what the Ottaviani study and article 7 call into question.

7.6 Rome against itself

BENEDICT XVI · *Summorum Pontificum* art. 1 and letter to the bishops (2007):
"The Roman Missal promulgated by Pope Paul VI is the ordinary expression of the *lex orandi* (rule of prayer) of the Catholic Church of the Latin rite. The Roman Missal promulgated by Saint Pius V and revised by Blessed John XXIII is nonetheless to be considered an extraordinary expression of the same *lex orandi* of the Church and duly honoured for its venerable and ancient usage. **These two expressions of the Church's *lex orandi* will in no way lead to a division in the Church's *lex credendi* (rule of faith); for they are two usages of the one Roman rite.**"
"There is no contradiction between the two editions of the Roman Missal. In the history of the liturgy there is growth and progress, but no rupture. **What earlier generations held as sacred, remains sacred and great for us too, and it cannot be all of a sudden entirely forbidden or even considered harmful.** … Needless to say, in order to experience full communion, the priests of the communities adhering to the former usage cannot, as a matter of principle, exclude celebrating according to the new books."

Context: Benedict XVI is freeing the 1962 Missal, which he says was "never abrogated", while keeping the Missal of Paul VI as the ordinary form. His letter explains to the bishops why this does not undermine the Council.

FRANCIS · *Traditionis Custodes* art. 1–2 and letter to the bishops (2021):
"Art. 1. **The liturgical books promulgated by Saint Paul VI and Saint John Paul II, in conformity with the decrees of Vatican Council II, are the unique expression of the *lex orandi* of the Roman Rite.** Art. 2. It belongs to the diocesan bishop … to regulate the liturgical celebrations of his diocese. Therefore, it is his exclusive competence to authorize the use of the 1962 Roman Missal in his diocese, according to the guidelines of the Apostolic See."
"But I am nonetheless saddened that the instrumental use of *Missale Romanum* of 1962 is often characterized by a rejection not only of the liturgical reform, but of the Vatican Council II itself … Responding to your requests, **I take the firm decision to abrogate all the norms, instructions, permissions and customs that precede the present *Motu proprio***, and declare that the liturgical books promulgated by the saintly Pontiffs Paul VI and John Paul II … constitute the unique expression of the *lex orandi* of the Roman Rite."

Context: Francis revokes Benedict XVI's permission. The 1962 Missal is not forbidden outright: a bishop may still authorise it (art. 2). But it is no longer an expression of the Roman rite's *lex orandi*. In the letter Francis gives his reason: many who use it reject the Council.

The contradiction: "two usages of the one Roman rite" that "cannot be … entirely forbidden" become one "unique expression", with the old rite reduced to a concession. Francis states the reason:

Francis, *Desiderio Desideravi* §31 (2022):
"It would be trivial to read the tensions, unfortunately present around the celebration, as a simple divergence between different tastes concerning a particular ritual form. **The problematic is primarily ecclesiological.** I do not see how it is possible to say that one recognizes the validity of the Council … and at the same time not accept the liturgical reform born out of *Sacrosanctum Concilium*, a document that expresses the reality of the Liturgy intimately joined to the vision of Church so admirably described in *Lumen gentium*."

Context: Francis is explaining why he restricted the old rite. He ties the reformed liturgy to the Council's "vision of Church" in *Lumen Gentium*.

Francis makes the dispute one about the Church itself, not about taste: the reformed rite carries the vision of Church of *Lumen Gentium*, and not to accept it is not to accept the Council. Benedict said the two missals express one faith; Francis says the difference is ecclesiological. They cannot both describe the same pair of rites.

What this adds up to

The post-conciliar body has a different profession (the anti-modernist oath dropped, "living Tradition" set against the bishop who held to the fixed meaning, the doctrines of sections 3–4), a different worship (essential sacramental forms replaced, the Mass newly defined), and pastors whose authority is in question (section 6 and Principle 3). By Bellarmine's three bonds, it is not the same religion. Archbishop Lefebvre, who never held the sedevacantist position, said the same in 1976:

"What could be clearer! Henceforth, it is the *Conciliar Church* to which one must be obedient and faithful, and no longer the Catholic Church. … **This *Conciliar Church* is a schismatic Church, because it breaks with the Catholic Church of all time. It has its new dogmas, its new priesthood, its new institutions, its new worship—already condemned by the Church in many official and definitive documents.** … The Church which affirms such errors is at once schismatic and heretical. This *Conciliar Church* is therefore not Catholic. Insofar as the Pope, bishops, priests, and faithful adhere to this new Church, they separate themselves from the Catholic Church." (Archbishop Lefebvre, "Reflections on the suspension *a divinis*", 29 July 1976, tr. *The WM Review*)

Context: Lefebvre is answering his suspension *a divinis* and a letter of Mgr Benelli (25 June 1976) asking for "true fidelity to the conciliar Church". He names as its founding errors the new conception of the Mass in article 7 of the Instruction and the natural right to religious liberty. He concluded that adherents of the "Conciliar Church" separate themselves from the Catholic Church, but he did not conclude that the Holy See was vacant.

8. Objections and answers

"Who are you to judge the pope?"

No one here claims to judge or depose a pope. The question is whether a man who publicly professes what the Church condemns *is* the pope. The 1917 Code counts public defection from the faith among the acts by which a cleric is held to have tacitly resigned his office. That office then becomes vacant "ipso facto et sine ulla declaratione" (by the fact itself and without any declaration) (canon 188, 4º; see Principle 3). Comparing published documents is not private judgment: the texts are public and can be read by anyone.

"The texts can be read in continuity. These are only changes of discipline or emphasis."

Those who defend the Council admit that something really changed, though each of them denies that doctrine was contradicted. Here are their words, with that denial left in.

> **Benedict XVI**, address to the Roman Curia, 22 December 2005:
> "It is clear that in all these sectors, which all together form a single problem, some kind of discontinuity might emerge. Indeed, **a discontinuity had been revealed** but in which, after the various distinctions between concrete historical situations and their requirements had been made, the continuity of principles proved not to have been abandoned. It is easy to miss this fact at a first glance. It is precisely in this combination of continuity and discontinuity at different levels that the very nature of true reform consists."
>
> *Context:* Benedict is defending a "hermeneutic of reform" against a "hermeneutic of discontinuity". The "sectors" are the Church's relations with modern science, with the modern State (religious freedom) and with the world religions and the Jews. He places the discontinuity in "the Church's decisions on contingent matters", and holds that the principles were kept.

Fr Brian Harrison, "Is Ecumenism a Heresy?":
"To compare these two magisterial documents, we first need to recall the distinction between a reversal of official Church policy, discipline or pastoral strategy, and a contradiction of doctrine. The former type of change has often taken place in the course of Church history, in response to changing circumstances. And in this practical, disciplinary respect, a comparison between MA and UR reveals an undeniable and very marked change of direction — **indeed, practically a U-turn.** Pius XI flatly forbade any Catholic participation in interchurch or inter-religious meetings and activities motivated by the desire for restoring Christian unity. Vatican II, on the other hand, authorizes and positively encourages Catholic participation in such activities (within certain limits). … At the more fundamental level of doctrine, however, the short answer to the charge of contradiction between MA and UR is that what Pius XI condemned is by no means the same thing that Vatican II affirms."

Context: Harrison is comparing Pius XI's *Mortalium Animos* (MA, 1928) with Vatican II's *Unitatis Redintegratio* (UR, 1964). The omitted sentence calls the change a prudential judgement that the good hoped from ecumenism outweighs its risks. He grants a U-turn in discipline and denies any contradiction in doctrine.

Michael Davies, *The Second Vatican Council and Religious Liberty* (1992), pp. 273–274, as quoted by Fr Brian Harrison:
"One instance in which it appears **impossible to deny the existence of a formal contradiction** is that of Proposition 78 of the Syllabus, which has already been cited in this appendix: *Hence it has been wisely decided by law, in some Catholic countries, that persons coming to reside therein shall enjoy the public exercise of their own peculiar worship.* Dignitatis humanae most certainly appears to contradict [the Papal condemnation of] this proposition by teaching that non-Catholics shall enjoy the public exercise of their own peculiar worship in every Catholic country, hence the changes in the Spanish Constitution documented in Appendix III."

Context: Davies says this of one proposition only. Elsewhere in the same book (p. 227, as quoted by Harrison) he writes: "I shall not claim that a contradiction exists. All that I wish to do is to state that I do not see how the traditional teaching and that of Dignitatis humanae can be reconciled". He also accepts that *Quanta Cura* is not formally contradicted. Harrison replies that Proposition 78 concerns policy towards immigrants, not doctrine.

Cardinal Ratzinger, "The Ecclesiology of the Constitution on the Church" (2000):
"With the word subsistit, the Council wished to explain the unicity of the Catholic Church and the fact of her inability to be multiplied: the Church exists as a subject in historical reality. The difference between subsistit and est however contains the tragedy of ecclesial division. Although the Church is only one and "subsists" in a unique subject, there are also ecclesial realities beyond this subject — true local Churches and different ecclesial communities. Because sin is a contradiction, **this difference between subsistit and est cannot be fully resolved from the logical viewpoint.**"

Context: Ratzinger is explaining *Lumen Gentium* §8, where the Church of Christ "subsists in" (*subsistit in*) the Catholic Church instead of Pius XII's "is" (*est*). He reads *subsistit* as affirming the Church's unicity. He puts the unresolved tension down to the contradiction of sin and division, not to a contradiction in doctrine.

Each of these writers places the change in discipline, policy or application, and denies that doctrine was contradicted. That is their position, and it is stated here fairly. This paper's claim is that the change reaches doctrine itself, and §§3–4 set the texts side by side so that the reader can test it. What the admissions establish is narrower: the change is real, and its defenders recognised it as such. It cannot be dismissed as a traditionalist misreading.

Rome itself has since abandoned continuity in the liturgy. In 2007 Benedict XVI wrote of the old and new missals: "In the history of the liturgy there is growth and progress, but no rupture. What earlier generations held as sacred, remains sacred and great for us too, and it cannot be all of a sudden entirely forbidden or even considered harmful." He held both missals to be legitimate, and he added that priests using the old one could not "as a matter of principle, exclude celebrating according to the new books" (letter to bishops with *Summorum Pontificum*). In 2021 *Traditionis Custodes* art. 1 declared: "The liturgical books promulgated by Saint Paul VI and Saint John Paul II, in conformity with the decrees of Vatican Council II, are the unique expression of the lex orandi of the Roman Rite."

"If the Church has been without a pope for sixty years, she is no longer visible. Christ promised she would last."

This is the strongest objection. Archbishop Lefebvre put it this way:

> **Archbishop Lefebvre**, statement of 8 November 1979 (Davies, *Apologia pro Marcel Lefebvre* II ch. 40):
> "Does not the exclusion of the cardinals of over eighty years of ages, and the secret meetings which preceded and prepared the last two Conclaves, render them invalid? Invalid: no, that is saying too much. Doubtful at the time: perhaps. But in any case, the subsequent unanimous acceptance of the election by the Cardinals and the Roman clergy suffices to validate it. That is the teaching of the theologians. **The visibility of the Church is too necessary to its existence for it to be possible that God would allow that visibility to disappear for decades.** The reasoning of those who deny that we have a Pope puts the Church in an inextricable situation. Who will tell us who the future Pope is to be? How, as there are no Cardinals, is he to be chosen?"
>
> *Context:* Lefebvre is answering traditionalists who held that Paul VI was a heretic and no longer pope. Just before this passage he grants that Paul VI signed texts "close to heresy if not formally heretical". He explains them by Paul VI's liberalism, not by heresy, and appeals to acceptance by the cardinals (see the next objection).

The Church must be visible. Leo XIII:

> **Leo XIII**, *Satis Cognitum* §3 (1896):
> "From this it follows that **those who arbitrarily conjure up and picture to themselves a hidden and invisible Church are in grievous and pernicious error**: as also are those who regard the Church as a human institution which claims a certain obedience in discipline and external duties, but which is without the perennial communication of the gifts of divine grace … But since the Church is such by divine will and constitution, **such it must uniformly remain to the end of time.** … The union consequently of visible and invisible elements because it harmonizes with the natural order and by God's will belongs to the very essence of the Church, must necessarily remain so long as the Church itself shall endure."
>
> *Context:* Leo XIII is arguing against Protestant ideas of an invisible Church. The Church is a body, and so is visible, and the visible element must last as long as the Church does. The omitted lines compare the union of the Church's visible and invisible elements to the union of soul and body, and of Christ's two natures.

The answer cannot be an invisible Church. This text cuts against any reply that makes the Church hidden, and it has to be met head-on.

What visibility requires. Theologians distinguish two kinds of visibility. *Material* visibility means that the Church is a public society, not a secret one. *Formal* visibility means that she stays recognisable for what she is:

Catholic Encyclopedia, "The Church" (1908):
"In asserting that the Church of Christ is visible, we signify, first, that as a society it will at all times be conspicuous and public, and second, that it will ever be recognizable among other bodies as the Church of Christ. These two aspects of visibility are termed respectively "material" and "formal" visibility by Catholic theologians. **The material visibility of the Church involves no more than that it must ever be a public, not a private profession**; a society manifest to the world, not a body whose members are bound by some secret tie. Formal visibility is more than this. It implies that in all ages the true Church of Christ will be easily recognizable for that which it is … This must, of course, be understood with some necessary qualifications. The power to recognize the Church for what it is presupposes certain moral dispositions. Where there is a rooted unwillingness to follow God's will, there may be spiritual blindness to the claims of the Church. Invincible prejudice or inherited assumptions may produce the same result. But in such cases **the incapacity to see is due, not to the want of visibility in the Church, but to the blindness of the individual.**"

Context: The article goes on to say that formal visibility is secured by the four marks, above all unity. The faithful "are united by the profession of a common faith, by participation in a common worship, and by obedience to a common authority", and "acknowledge in the successor of Peter the same supreme ruler." The "blindness" sentence is about people whose moral dispositions or prejudice keep them from seeing a Church that is in itself plain to see.

That is a demanding standard, and the last part of it, unity under a known successor of Peter, is precisely what a long vacancy obscures. The sedevacantist reply has two parts. First, the other marks, especially unity of faith, are kept visibly by the clergy and faithful who publicly hold the faith and the sacraments. Second, unity under the papacy remains as a right and a demand of the Church even while the See is empty (Dorsch, below). Archbishop Lefebvre appealed to the same marks in 1988, though he made the appeal while still recognising the pope:

Archbishop Lefebvre, retreat of 9 September 1988:
"Where is the visible Church? The visible Church is recognised by the signs she has always given for her visibility: she is one, holy, catholic and apostolic. … All this shows that **it is we who bear the marks of the visible Church.** If there is still any visibility of the Church today, it is thanks to you. These signs are no longer to be found among the others. The unity of faith no longer exists with them, yet it is faith which is the foundation of all visibility of the Church."

Context: Lefebvre is speaking to his priests after the 1988 consecrations. The omitted lines go through unity, catholicity, apostolicity and holiness in turn. He then adds: "we are always united to the Roman Church, and even to the Pope, of course, to the successor of Peter." The sedevacantist takes his criterion, not his conclusion.

Widespread failure among the bishops has happened before. In the Arian crisis:

> **St Jerome**, *Dialogue against the Luciferians* §19 (NPNF translation):
> "Valens and Ursacius and others associated with them in their wickedness, eminent Christian bishops of course, began to wave their palms, and to say they had not denied that He was a creature, but that He was like other creatures. At that moment the term Usia was abolished: the Nicene Faith stood condemned by acclamation. **The whole world groaned, and was astonished to find itself Arian.** Some, therefore, remained in their own communion, others began to send letters to those Confessors who as adherents of Athanasius were in exile; several despairingly bewailed the better relations into which they had entered. … The bishops who had been caught in the snare at Ariminum and had unwittingly come to be reported of as heretics, began to assemble, while they called the Body of our Lord and all that is holy in the Church to witness that they had not a suspicion of anything faulty in their own faith. … We did not suppose that the bishops of Christ were fighting against Christ."
>
> *Context:* Jerome is describing the Council of Ariminum (359). There the bishops signed an ambiguous creed in good faith, and Valens and his party then claimed it for the Arian sense. He is writing *against* the Luciferians, who refused communion with those bishops. In §§19–21 he argues that the bishops were deceived, not heretics, and should be received. He says of Lucifer's separation that "he separated off a few sheep and abandoned the remnant of the flock". Jerome is a witness to how far error could spread among the bishops, not to the rightness of separating. His bishops had been deceived and recanted.

> **St Basil** and the Eastern bishops, *Letter* 92 §2, to the bishops of Italy and Gaul:
> "The doctrines of true religion are overthrown. The laws of the Church are in confusion. The ambition of men, who have no fear of God, rushes into high posts, and exalted office is now publicly known as the prize of impiety. The result is, that the worse a man blasphemes, the fitter the people think him to be a bishop. … All the while unbelievers laugh; men of weak faith are shaken; faith is uncertain; souls are drenched in ignorance, because adulterators of the word imitate the truth. The mouths of true believers are dumb, while every blasphemous tongue wags free; holy things are trodden under foot; **the better laity shun the churches as schools of impiety; and lift their hands in the deserts with sighs and tears to their Lord in heaven.** Even you must have heard what is going on in most of our cities, how our people with wives and children and even our old men stream out before the walls, and offer their prayers in the open air … waiting for help from the Lord."
>
> *Context:* The letter is signed by Meletius, Basil and some thirty other Eastern bishops. They describe sees held by Arians and ask the Western bishops to come to their help. The writers are themselves orthodox bishops, and the letter is an appeal for help and communion from the West.

St Gregory Nazianzen, *Oration* 33 §15, "Against the Arians, and concerning himself":
"**These men have the houses, but we the Dweller in the house; they the Temples, we the God**; and besides it is ours to be living temples of the Living God, lively sacrifices, reasonable burnt-offerings, perfect sacrifices, yea, gods through the adoration of the Trinity. They have the people, we the Angels; they rash boldness, we faith; they threatenings, we prayer; they smiting, we endurance; they gold and silver, we the pure word. … Is mine a little flock? But it is not being carried over a precipice. Is mine a narrow fold? But it is unapproachable by wolves … I shall yet see it, I know well, wider. And many of those who are now wolves, I must reckon among my sheep, and perhaps even among the shepherds."

Context: Gregory is answering Arian opponents who hold the church buildings and the crowds while his own orthodox flock is small. He expects many of them to return.

A long vacancy of the Holy See is not excluded. The papacy is perpetual as an office, not as an unbroken occupancy.

The anathema most often cited against this paper is this one:

ANATHEMA · Vatican I, *Pastor Aeternus* ch. 2 (Tanner translation):
"Therefore, **if anyone says that it is not by the institution of Christ the lord himself (that is to say, by divine law) that blessed Peter should have perpetual successors in the primacy over the whole church**; or that the Roman pontiff is not the successor of blessed Peter in this primacy: let him be anathema."

Context: chapter 2 is "On the permanence of the primacy of blessed Peter in the Roman pontiffs". It teaches that what Christ established in Peter "must of necessity remain for ever … in the church".

The canon defines that the primacy has perpetual successors *by divine institution*: that the office is never abolished, and that whoever lawfully holds the Roman See succeeds Peter in it. It does not define that the See is never vacant. If it did, every interregnum would contradict it, including the vacancies of 304–308 and 1268–1271 below. The question is how long a vacancy can be, and the theologians do not fix a limit:

A. Dorsch SJ, *Institutiones Theologiae Fundamentalis* II: *De Ecclesia Christi* (1928), pp. 196–197:
"Corollarium. Est ergo ecclesia societas essentialiter monarchica. **Neque obstat, quod mortuo papa ecclesia per aliquod tempus vel etiam per plures annos capite suo destituta manet; manet enim ejus forma monarchica etiam in isto casu**; de qua re haec teneas. a) Potestas regendi suprema isto tempore actu quidem non adest, neque in toto ecclesiae corpore, neque in episcopis; adest tamen exigentia eiusdem determinata, qua novus primas omnino eligi debet; neque igitur forma monarchica tum transit in aliam. b) Manet tunc potestas quidem episcoporum in suo ordine; est enim ordinaria eorumque muneri conexa; sed haec potestas ex sese vel illo tempore incompleta est et insufficiens ad gubernandam totam ecclesiam qua talem et exigit tanquam necessarium complementum potestatem capitis; ideoque isto tempore nec dogma ullum definiri nec concilium oecumenicum celebrari potest."
(Corollary. The Church is therefore an essentially monarchical society. Nor is it an obstacle that, when the pope has died, the Church remains without her head for some time or even for several years; for her monarchical form remains even in that case. On this point hold the following. a) At that time the supreme power of ruling is not actually present, neither in the whole body of the Church nor in the bishops; but there is present a determinate demand for it, by which a new primate must by all means be elected, so the monarchical form does not then pass into another. b) The power of the bishops does then remain in its own order, for it is ordinary and joined to their office; but this power, of itself and at that time, is incomplete and insufficient to govern the whole Church as such, and demands the power of the head as its necessary complement; and so at that time no dogma can be defined and no ecumenical council held. Author's translation.)

Context: Dorsch is answering the objection that a vacancy breaks the Church's monarchical constitution. He has in view a vacancy after a pope's death, not one caused by heresy, and he assumes that the bishops keep their ordinary power meanwhile. These lines of the archive.org OCR are legible; only line-end hyphens have been joined.

E. S. Berry, *The Church of Christ* (1927), pp. 397–398:
"When the Apostolic See is vacant, there is no supreme authority in the Church; the bishops retain power to rule their respective dioceses, but no laws can be made for the universal Church, no dogmas of faith can be defined, no legitimate council convened. In place of this supreme authority, the Church has the right and the duty of selecting someone upon whom Christ will again bestow it. It is evident, then, that **the Apostolic succession cannot fail in the Apostolic See so long as the Church herself continues to exist, for although the see be vacant for many years, the Church always retains the right to elect a legitimate successor**, who then obtains supreme authority according to the institution of Christ."

Context: Berry is explaining that the pope receives his power immediately from Christ, while the Church designates the person. On the next page he adds that a pope "must also be a member of the Church since no one can be the head of any society unless he also be a member of that society". Like Dorsch, he assumes that the bishops keep their dioceses during a vacancy.

E. J. O'Reilly SJ, *The Relations of the Church to Society* (1892), p. 283:
"We may here stop to inquire what is to be said of the position, at that time, of the three claimants, and their rights with regard to the Papacy. In the first place, there was all through, from the death of Gregory XI. in 1378, a Pope — with the exception, of course, of the intervals between deaths and elections to fill up the vacancies thereby created. There was, I say, at every given time a Pope, really invested with the dignity of Vicar of Christ and Head of the Church, whatever opinions might exist among many as to his genuineness; **not that an interregnum covering the whole period would have been impossible or inconsistent with the promises of Christ, for this is by no means manifest**, but that, as a matter of fact, there was not such an interregnum."

Context: O'Reilly is discussing the Western Schism ahead of the Council of Constance. His own judgement is that there *was* a true pope throughout, Urban VI and his line. He only declines to say that a forty-year interregnum would have been impossible.

> *Catholic Encyclopedia*, "Western Schism" (1912):
> "Christendom was quickly divided into two almost equal parties. **Everywhere the faithful faced the anxious problem: where is the true pope? The saints themselves were divided**: St Catherine of Siena, St. Catherine of Sweden, Bl. Peter of Aragon, Bl. Ursulina of Parma, Philippe d'Alencon, and Gerard de Groote were in the camp of Urban; St. Vincent Ferrer, Bl. Peter of Luxemburg, and St. Colette belonged to the party of Clement. … There was simply ignorance, and among the greater number invincible ignorance regarding the person of the true pope, regarding him who was at that time the visible depositary of the promises of the invisible Head."
>
> *Context:* The article calls the schism "a deplorable misunderstanding concerning a question of fact", in which "faith in the necessary unity never wavered a particle". It shows how long the Church could be without a *certainly known* head. It is not an example of a vacant See.

The See was also vacant for about four years (304–308) and almost three years (1268–1271).

What remains open. The theologians who allow a long vacancy assume that diocesan bishops with ordinary jurisdiction remain in place during it (Dorsch, Berry). Where such bishops are today, and how a future pope will be elected, are real questions that sedevacantist theologians answer in different ways. This paper does not pretend they are settled. But every alternative faces a greater difficulty (see the last objection below). And Catholic theology already holds that the Church can provide for herself when she lacks a certain head:

> **E. J. O'Reilly SJ**, *The Relations of the Church to Society* (1892), pp. 287–288:
> "A General Council was the proper remedy, or rather the proper road to a remedy. Clearly **the Church, when destitute of a Head, or of a certain unquestioned Head, has the right and the power to provide for herself**, and determine on a course which seems fit to furnish her with a Supreme Pontiff, and the course maturely taken is to be considered as Divinely authorised. … If this schism had not occurred, the hypothesis of such a thing happening would appear to many chimerical. They would say it could not be; God would not permit the Church to come into so unhappy a situation. … But that Catholics should be divided on the question of who was Pontiff, that the true Church should remain between thirty and forty years without a thoroughly ascertained Head, and representative of Christ on earth, this would not be. Yet it has been; and we have no guarantee that it will not be again, though we may fervently hope otherwise. What I would infer is, that **we must not be too ready to pronounce on what God may permit.**"
>
> *Context:* O'Reilly is explaining how the Council of Constance ended the Western Schism. The remedy he names is a General Council of the bishops. He goes on to say that "contingencies regarding the Church, not excluded by the Divine promises, cannot be regarded as practically impossible, because they would be terrible and distressing in a very high degree."

There is a second anathema here, and it bears on every traditional priest and bishop, whatever his view of the papacy:

> **ANATHEMA** · Council of Trent, Session 23, canon 7, last clause:
> "… or, that **those who have neither been rightly ordained, nor sent, by ecclesiastical and canonical power, but come from elsewhere, are lawful ministers of the word and of the sacraments**; let him be anathema."
>
> *Context:* the clause is aimed at the Protestant claim that ministers may be called by the congregation or the civil power. The same canon condemns those who say that orders conferred "without the consent, or vocation of the people, or of the secular power, are invalid".

This is a real difficulty, and it is not peculiar to sedevacantists: the bishops of the Society of St Pius X were also consecrated without, indeed against, a mandate from the man they recognise as pope. The traditional clergy answer that they claim no mission from the people, and that the Church herself supplies jurisdiction where the faithful need the sacraments: "In errore communi aut in dubio positivo et probabili sive iuris sive facti, iurisdictionem supplet Ecclesia pro foro tum externo tum interno" (In common error, or in positive and probable doubt of law or of fact, the Church supplies jurisdiction for both the external and internal forum) (1917 Code, canon 209). Whether supplied jurisdiction covers the present situation is disputed among sedevacantist theologians themselves. This paper states it as an open question.

"The whole Church accepted these popes, and universal acceptance is an infallible sign of a legitimate pope."

The principle is from Cardinal Billot. The whole passage should be read, because it cuts both ways:

Cardinal Billot, *Tractatus de Ecclesia Christi* I (1909), pp. 620–621:
"Sed quidquid demum de possibilitate vel impossibilitate praelatae hypothesis adhuc sentias, id saltem veluti penitus inconcussum et extra omnem dubitationem positum firmiter tenendum est: **adhaesionem universalis Ecclesiae fore semper ex se sola infallibile signum legitimitatis personae Pontificis, adeoque et exsistentiae omnium conditionum quae ad legitimitatem ipsam sunt requisitae.** Neque huius rei a longe repetenda ratio. Immediate enim sumitur ex infallibili Christi promissione atque providentia: Portae inferi non praevalebunt adversus eam, et iterum: Ecce ego vobiscum sum omnibus diebus. Idem namque foret, Ecclesiam adhaerere pontifici falso, ac si adhaereret falsae fidei regulae, cum Papa sit regula vivens quam Ecclesia in credendo sequi debet et semper de facto sequitur, uti ex dicendis in posterum luculentius adhuc apparebit. **Equidem permittere potest Deus ut aliquando vacatio sedis diutius protrahatur.** Permittere quoque potest ut de legitimitate unius vel alterius electi exoriatur dubium. **Permittere autem non potest ut Ecclesia tota eum admittat pontificem qui verus et legitimus non sit.** Ex quo igitur receptus est, et Ecclesiae coniunctus ut corpori caput, non est amplius movenda quaestio de possibili vitio electionis vel defectu cuiuscumque conditionis ad legitimitatem necessariae, quia praedicta Ecclesiae adhaesio omne vitium electionis radicitus sanat, et exsistentiam omnium requisitarum conditionum infallibiliter ostendit. Et hoc sit obiter dictum contra eos qui certa tentamina schismatica tempore Alexandri VI facta hoc nomine cohonestare volunt, quod ab eo fiebant qui de haereticitate Alexandri certissimas probationes in Concilio generali revelandas habere se dictitabat. At vero, ut aliae nunc rationes omittantur quibus opinio ista facile posset confutari, haec una sufficit: Constat nempe quod tempore quo Savonarola suas ad principes litteras scribebat, tota christianitas Alexandro adhaerebat et obediebat tanquam vero pontifici. Ergo eo ipso, Alexander non erat pontifex falsus, sed legitimus. **Ergo non erat haereticus, ea saltem haereticitate quae tollendo rationem membri Ecclesiae, pontificia potestate vel qualibet alia ordinaria iurisdictione ex natura rei consequenter privat.**"
(But whatever you may still think about the possibility or impossibility of the hypothesis just set out, this at least must be held firmly as wholly unshaken and beyond all doubt: **the adhesion of the universal Church will always be, of itself alone, an infallible sign of the legitimacy of the person of the Pontiff, and therefore also of the existence of all the conditions required for legitimacy itself.** The reason for this need not be sought from afar. It is taken directly from the infallible promise and providence of Christ: The gates of hell shall not prevail against her; and again: Behold, I am with you all days. For it would be the same thing for the Church to adhere to a false pontiff as to adhere to a false rule of faith, since the Pope is the living rule which the Church must follow in believing, and in fact always does follow, as will appear still more clearly from what is to be said later. **God can indeed permit that at times the vacancy of the See be prolonged for a long time.** He can also permit doubt to arise about the legitimacy of one or another man elected. **But He cannot permit that the whole Church should accept as pontiff one who is not the true and legitimate pontiff.** From the moment, then, that he has been received and joined to the Church as head to body, the question of a possible defect in the election, or of the lack of any condition necessary for legitimacy, is no longer to be raised; for the

> said adhesion of the Church heals at the root every defect of the election and infallibly shows the existence of all the required conditions. Let this be said in passing against those who wish to justify certain schismatic attempts made in the time of Alexander VI on the ground that their author kept saying he had most certain proofs of Alexander's heresy to reveal in a general council. But, to pass over other reasons by which that opinion could easily be refuted, this one suffices: it is established that at the time when Savonarola was writing his letters to the princes, all Christendom adhered to Alexander and obeyed him as true pontiff. Therefore by that very fact Alexander was not a false pontiff but a legitimate one. **Therefore he was not a heretic, at least not with that heresy which, by taking away the standing of a member of the Church, consequently deprives a man, by the nature of the case, of pontifical power or any other ordinary jurisdiction.** Author's translation.)
>
> *Context:* This closes Billot's thesis on the perpetuity of the primacy. The "hypothesis" is that of a pope falling into heresy, which he has just discussed without settling it. The OCR has been silently corrected (e.g. "praevalebunt adversus", "sum omnibus diebus", "haereticitate"), and line-end hyphens joined.

St Alphonsus is usually quoted for the same principle:

St Alphonsus Liguori, *Verità della Fede* (1767), Part III ch. 8 nn. 9–10, p. 104:
"9. Niente ancora importa, che ne' secoli passati alcun Pontefice sia stato illegittimamente eletto, o fraudolentemente siasi intruso nel Pontificato; basta che poi sia stato accettato da tutta la Chiesa come Papa, attesochè per tale accettazione già si è renduto legittimo, e vero Pontefice. **Ma se per qualche tempo non fosse stato veramente accettato universalmente dalla Chiesa, in tal caso per quel tempo sarebbe vacata la Sede Pontificia, come vaca nella morte de' Pontefici.** Così neppure importa, che in caso di Scisma siasi stato molto tempo nel dubbio, chi fosse il vero Pontefice; perchè allora uno sarebbe stato il vero, benchè non abbastanza conosciuto; e se niuno degli Antipapi fosse stato vero, allora il Pontificato sarebbe similmente vacato. 10. Che poi alcuni Pontefici sieno caduti in eresia, taluni han cercato di provarlo, ma non mai l'han provato, nè mai lo proveranno; e noi chiaramente proveremo il contrario nella fine del Capo X. Del resto, **se Dio permettesse, che un Papa fosse notoriamente eretico, e contumace, egli cesserebbe d'esser Papa, e vacherebbe il Pontificato.** Ma se fosse eretico occulto, e non proponesse alla Chiesa alcun falso Dogma, allora niun danno alla Chiesa recherebbe: dobbiam giustamente presumere, come dice il Cardinal Bellarmino, che Iddio non mai permetterà, che alcuno de' Pontefici Romani, anche come uomo privato, diventi eretico nè notorio, nè occulto."
(9. Nor does it matter that in past centuries some Pontiff was illegitimately elected, or fraudulently intruded himself into the Pontificate; it is enough that he was afterwards accepted by the whole Church as Pope, since by such acceptance he has become legitimate and true Pontiff. **But if for some time he had not been truly accepted universally by the Church, in that case for that time the Pontifical See would have been vacant, as it is vacant at the death of the Pontiffs.** Nor, likewise, does it matter that in a case of schism there was long doubt as to who was the true Pontiff; for then one would have been the true one, though not sufficiently known; and if none of the antipopes had been true, then the Pontificate would likewise have been vacant. 10. As for some Pontiffs having fallen into heresy, some have tried to prove it, but have never proved it, nor ever will; and we shall clearly prove the contrary at the end of Chapter X. For the rest, **if God permitted a Pope to be notoriously heretical and contumacious, he would cease to be Pope, and the Pontificate would be vacant.** But if he were an occult heretic and did not propose any false dogma to the Church, then he would do the Church no harm; we must justly presume, as Cardinal Bellarmine says, that God will never permit any Roman Pontiff, even as a private man, to become a heretic, either notorious or occult. Author's translation.)

Context: St Alphonsus is defending the unbroken succession of the Roman Pontiffs against Protestant objections; n. 8 deals with the Avignon residence. His examples in n. 9 are illegitimate election and fraudulent intrusion. The archive.org OCR prints the long s as "f" ("Chiefa", "fiato"). This has been normalised to modern spelling (Chiesa, stato), and the punctuation that the OCR garbled has been restored.

What this means. Billot's principle is stronger than a cure for defects in the election. In his words the Church's adhesion also "infallibly shows the existence of all the required conditions", and he uses it to argue that Alexander VI was not a heretic of the kind that loses membership. So the answer cannot be

that acceptance covers only the election, for Billot's own text says otherwise. What both authors grant is narrower, and it matters here.

- A long vacancy is possible (Billot).
- The sign works only when the acceptance is that of the *whole* Church: "Ecclesia tota", "tutta la Chiesa", "veramente accettato universalmente". Without true universal acceptance, St Alphonsus says, the See is vacant for that time.
- St Alphonsus also holds that a notoriously heretical pope "would cease to be Pope", though he presumes that God will never permit it.

So the real question is whether the acceptance of the post-conciliar claimants is the adhesion of the whole Church in Billot's sense. Billot grounds his principle in the pope being the "living rule" of faith that the Church follows. The sedevacantist argues that a Church adhering to a rule that contradicts her own earlier dogma (§§3–4) would be exactly what Billot calls impossible. Therefore, the argument runs, this acceptance is not the Church's adhesion in his sense. A defender of the principle answers that a dissenting minority does not destroy the Church's moral unanimity. The two principles collide here, and the reader should see that plainly. This paper holds that the integrity of the Church's teaching, laws and rites (Principle 1) is the firmer of the two: popes and councils teach it directly, whereas the acceptance principle is a theologians' conclusion drawn from it. Dissent from the conciliar changes also began early. In 1969 Cardinals Ottaviani and Bacci protested the new Mass to Paul VI, though they did not question his office.

"Why not simply recognize the pope and resist his errors, as the Society of St Pius X does?"

Because that position meets the same difficulty in a worse form. If the recognized pope and bishops really are the Church's authority, then the Church's authority has given the whole Church error in doctrine, harmful universal law and doubtful sacraments, which Principle 1 says cannot happen. Fr Anthony Cekada put the choice this way:

> **Fr Anthony Cekada**, "Resisting the Pope, Sedevacantism and Frankenchurch" (2005):
> "**Since the authority of the Church cannot give evil or error, and since individual Catholics may not "resist" a true pope, R&R-ers face three possible conclusions:** (1) The New Mass and Vatican II teachings are Catholic. (…) (2) The authority of the Catholic Church has defected. (…) (3) The New Mass and the Vatican II teachings are not Catholic, and so could not have come from the authority of the Church. (…) The evils and errors most traditionalists acknowledge, in other words, are solid evidence that the lawgivers lost their authority. Sedevacantism merely tries to explain how."
>
> *Context:* "R&R" is Cekada's term for the "recognise and resist" position of the Society of St Pius X and its allies. The omitted parentheses are satirical asides on each option. He goes on to argue, from canon 188 and the canonists, that a cleric who publicly defects from the faith loses his office.

Only the third conclusion keeps the Church indefectible. Archbishop Lefebvre himself faced the same facts in 1984 and drew a different conclusion:

> **Archbishop Lefebvre**, letter of 1984 (quoted in Tissier de Mallerais, *Marcel Lefebvre: The Biography*, 2004, p. 534):
> "**One has had to live from 1960 to the present moment to discover that Popes can lead the Church to her ruin.** Such a thing seemed impossible to us, given the promises of the Holy Ghost's assistance. Contra factum non fit argumentum. Against the facts, there is no argument. The facts are there before our eyes. So, we have to conclude that when our Lord spoke of help until the end of time, he did not exclude periods of darkness and a time of Passion for His mystical Spouse."
>
> *Context:* Lefebvre wrote this to friends who had recommended Fr Emmanuel's nineteenth-century pages on the "Passion of the Church", which he had just read. He concluded that true popes can do this and that Christ's promise allows it as a "Passion".

Lefebvre admits that the Holy Ghost's promised assistance seemed to make this impossible. He then sets the promise aside in favour of the facts. This paper keeps both: the facts are as he describes, and the promise excludes that the Church's own authority should cause them through her official teaching, laws and rites (Principle 1). Therefore, this paper concludes, those who caused them did not hold that authority.

The jurisdiction question also applies equally to the Society: its bishops were consecrated against the express will of the man it recognizes as pope.

“Sedevacantists cannot even agree among themselves.”

They agree on the conclusion argued here: the conciliar teaching contradicts the Church’s teaching, so its authors do not hold the Church’s authority. They disagree on secondary questions such as how a future pope will be elected. Disagreement about what follows from a conclusion is not evidence against the conclusion.

9. Conclusion

The Church cannot give her children error, harmful laws or doubtful sacraments. Since the Council, the authorities in Rome have contradicted, in official and universal acts, the express teaching and law of the popes before them. Their defenders admit that a real change took place; they deny that it touches doctrine. The texts set side by side in this paper are the reader's means of judging that claim. The Church cannot have failed. Therefore those authorities do not possess the Church's authority, and the Holy See is vacant.

This conclusion does not abandon the papacy; it is the only one that keeps intact what the popes taught about the papacy. It leaves a hard question about how the Church's hierarchy will be restored. That question is real, but it is a question about the future. The alternative, that the Church herself has taught error, would be a contradiction of the faith.

> "But yet the Son of man, when he cometh, shall he find, think you, faith on earth?" (Luke 18:8, Douay-Rheims)

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